

THE QUARTERLY

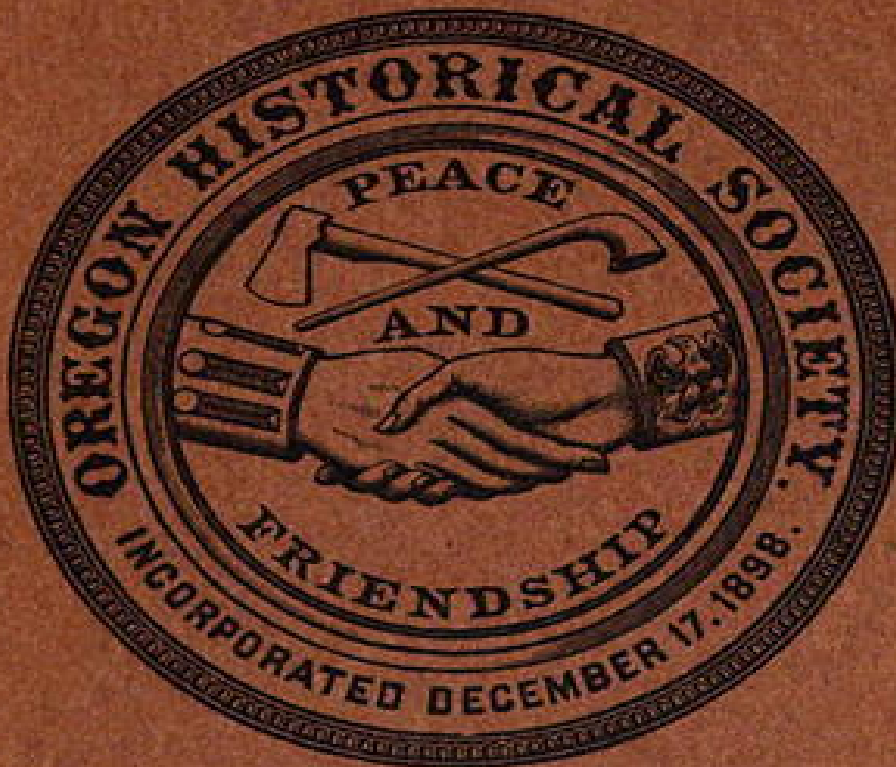
OF THE

OREGON HISTORICAL SOCIETY

VOL. 1

MARCH, 1900

No. 1



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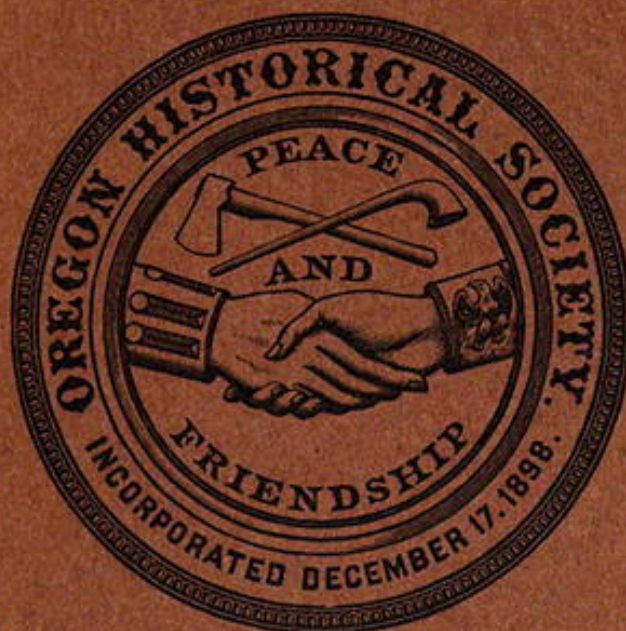
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Title: The quarterly of the Oregon Historical Society, Vol. 1, No. 1, March, 1900

Author: Oregon Historical Society

Release date: April 11, 2018 [eBook #56964]

Language: English

Other information and formats: www.gutenberg.org/ebooks/56964

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QUARTERLY OF THE OREGON HISTORICAL SOCIETY, VOL. 1, NO.
1, MARCH, 1900 ***

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HISTORICAL SOCIETY
(Vol. 1, No. 1)

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THE OREGON HISTORICAL SOCIETY

ORGANIZED DECEMBER 17, 1898

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VOLUME 1.]

MARCH, 1900

[NUMBER 1.

THE QUARTERLY

OF THE

OREGON HISTORICAL SOCIETY.

THE GENESIS OF POLITICAL AUTHORITY AND OF A COMMONWEALTH GOVERNMENT IN OREGON.

[Printed by the author for private distribution, August, 1899.]

At the present time, when interest is becoming more generally centered upon the Pacific Coast and the future which seems to be lying before it during the next century of our national life, any contribution to a knowledge of its history can hardly be out of place. It is quite clear that from now on through the future it must more and more pass out from the sphere of purely local interest and assume a larger place in the current of our national history. Although the southern half of the coast may be more familiar to the greater number of people, yet the northern half has a history which is fully as rich and well repays most careful study. Of the many interesting phases which have presented themselves, none has had so great an attraction for the writer as the development of civil institutions. It is interesting to review the gradual evolution of a locality from primitive conditions of wildness to that perfect form of social life where individuals act under the privileges and restrictions of a civil government, voluntarily imposed and perfectly integrated with the larger scheme of national government. It is a stimulating process to try to make any correct estimate of the various agencies which have taken part in the complex process of growth, and to place an accurate valuation upon the services of leading personalities, the influence of aggregates of less prominent individuals, and general determining influences which may not at first be seen at all. It is a test of judgment to put oneself at the different points of view, so often conflicting, to be fair to all and to be firm in drawing conclusions where the weight of evidence seems to lie; and a knowledge of the slowness of this process of growth, with the careful thought and heroic action by which it has come about, creates a respect for government and prepares for a wiser use of the privileges enjoyed under its beneficent rule. In following out the theme set before us it is to be remembered that by Oregon is meant that piece of

territory whose boundaries have been gradually shrinking to their present compass from an area extending from the Spanish possessions at the forty-second degree of latitude to the Russian possessions at the fifty-fifth degree, and between the Rocky Mountains and the Pacific Ocean.

In many respects this history resembles that of the other states of our Union. In common with them there has been a gradual growth from those fragmentary germs of civic life out of which civil government grows, which fragmentary forms begin to operate as soon as individuals come together in social relation, often long before localities are entitled to take their places as parts of a nation. As in the case of other states, there was the acquisition of territory, in this case preceded by a partial acquisition. Like the other states, it has passed through the various steps prescribed by congress for the transition from newly acquired territory to perfect statehood; but, as other states have passed through this common process with a great variety of interesting and unique experiences, so Oregon has had its own history, peculiar to itself, and in some respects different from that of any other state. It is the purpose of this paper to set forth briefly the leading facts, so far as they may be gained from the sources at present available, and to present them, so far as possible, in historical perspective, and as a part of the growth of our national life.

In the examination of a subject connected with local history it is easy to be carried away by local circumstances, and to fail to grasp those larger features which connect it with the history of the nation and to some extent with that of the world. Our truest knowledge of the subject, however, will come from this broader approach and a search first for those general conditions which underlay the more detailed history and were instrumental in determining its drift.

In order that we may see the wider scope of our subject we need only to remember that during the early centuries of exploration the territory whose civil life we are to study was at stake in the great struggle between those countries which were striving for the mastery of the world, and many a stroke of policy that seemed to affect these remote regions had its only significance as it bore upon the conflict of England and Spain. And then, when the Russian Empire, through the impetus received from Peter the Great and Catherine II, continued its process of expansion eastward, its outer wave reached the western shores of America and they became an

important factor in the larger stream of world history. And finally when the thirteen colonies separated from England, this new and vigorous nation found an interest in those regions, and they became an important factor in the relations of England and the United States.

In the study of the development of civil government in Oregon, since the region has had any interest to our nation, we need first to note those general conditions which have to a large extent been responsible for the detailed history. The one which is perhaps most apparent and whose effect has been greatest, is the geographical location of the territory as compared with the rest of the United States. Separated from the older sections of the country by long stretches of prairie, and by two large mountain systems, accessible by water only after a long and tedious journey around Cape Horn, its position was one of extreme isolation. This peculiar isolation explains very much that is characteristic of the early history of our civil government. It explains the ignorance that prevailed so long in the older sections regarding the value of the country, and the consequent apathy against which the champions of the west in congress had so long to contend; it explains, likewise, that voluntary and heroic action by which the colonists, stung by the delays and impelled by their needs and desires for a democratic type of government, took the initiative and brought into being a pioneer provisional state to bridge over the period of delay, and to hold the country in trust until the slow movings of the national consciousness should awaken to its interests.

Another and equally important factor in determining the drift of events was the joint claim and occupancy of the country with England. The history of civil government under such circumstances must necessarily be different from that of territory fully acquired by the national government. It is clear that it must connect, indissolubly, the question of a government with that of the boundary, and render any satisfactory solution of the former impossible until the settlement of the latter. The framing of any kind of a plan of government that would really be efficient without giving cause for offense to the partner to the title of the land must be a problem of the most difficult nature, as it was found to be. And the problem was still further complicated by reason of the fact that the question of boundary belonged to the executive part of the government, while that of the formation of a civil government belonged to the legislative. And then, too, by virtue of its being

thrown into the realm of international affairs, the formation of a civil government was delayed because of its connection with that complicated balancing of interests which always characterizes diplomatic procedure, where settlement of questions is slow and oftentimes accompanied by national friction.

To joint occupancy also must be attributed the throwing into close relationship of two different and antagonistic types of life. There was in the first place the difference of nationality, which, in view of the feelings engendered in the struggle for independence and the war of 1812, did not promise cordiality; there was the difference of industrial systems which brought into sharpest and most bitter conflict the ably managed monopoly of the English company and the independent American trader or trapper with his idea of free competition and equal right to operation in the region jointly held. And lastly, there was the difference in regard to the treatment of the native races. The English found it mostly to their interest to leave things as they were, and to keep the country a wilderness, suitable for a trapping ground for many years to come, while the Americans aspired to better the life of the savage, and to build up a condition of civilized life. The difference was all the more marked because of the entrance of the missionaries and the important part played by these leaders, who exercised an influence perhaps second only to that of the early religious leaders of New England, and whose energies were untiring in the interests of good government and a moral population. That two such diverse types of life could exist side by side during the twenty-eight years of joint occupancy without influencing the course of civil government is not to be conceived. That the relation was harmonious at first is true, but that irritations arose as time went on was inevitable.

In any analysis of the influences affecting the course of civil government in Oregon a prominent place should be given to that slow yet powerful westward movement of population. It consisted of a people aggressive and assertive of their own desires, patriotic, and upright in the main, with a consciousness of their own wants and their ability to get them, and possessing but little knowledge of, or reverence for, the intricacies of international usage, or the restrictions of a conservative legislative body. Being a part of the people, they were the sovereign power, and if they determined upon having the west, it must finally be had. This was a

movement which led thousands of intrepid immigrants to anticipate the government in going to remote regions. Those who remained behind had now a greater interest in the country, and ere long it was to be the impulse from this movement which aroused the national consciousness to the importance of the Oregon question, gave it a place among the problems of the nation, put it upon the platform of a political party as a prominent issue, and forced a settlement of the boundary, and finally secured a civil government.

After all other difficulties were overcome, after the barrier of distance was removed, after the stormy season of threatened war over the boundary line had passed away, civil government in Oregon became inevitably connected with another question which was to affect its destiny. The deepening bitterness between the north and the south was drawing everything into the maelstrom of slavery discussion, and particularly was this true in the case of every piece of newly acquired territory whose destiny was inseparably connected with the defeat or justification of the system of slavery.

With this brief survey of the general conditions which have operated to determine the course of events, the narrative of the more important details in the growth of civil government in Oregon may be better understood. We find that in the days of the discoverer, explorer, and fur trader there was no civil government at all, except such as was exercised by the native races for the regulation of their primitive life. Every one was dependent upon his own resources for the protection of life and property. From the time that the first Spanish ship, under the command of Ferrelo, touched the southern shore of Oregon, in the middle of the sixteenth century, until the beginning of the nineteenth, there was as much freedom from the restraints of social order as any anarchist could wish. There was nothing to check the conflicts that might arise between the crews of vessels, from the same or different nations, in their eagerness for the glories of discovery or the profits of trade with the Indians. There was nothing to shield from the danger of massacres from tribes, hostile by nature, or by contact with the whites. The explorer or trader who penetrated the interior must trust to his own ability for safety, and to his judgment in making friends with the Indians. There was nothing to regulate men in the struggle to reap the natural advantages of the region. They had little interest in the Indians, except as they could use them to their

profit; they had small regard for the rights of others, as they were outside the pale of rights and laws; they cared nothing for the conditions that they made for the future, as it was not to be their home. It was a period for romantic adventures, to pass away before the quieter but more beneficent regime of social order.

When, however, the scattered fur trading interests began to centralize by the formation of fur trading companies, some of the functions which belong to a civil government began to arise. The Pacific Fur Company, established by John Jacob Astor at the mouth of the Columbia River in 1811, with its little fort, exercised a greater authority in the protection of life and property than had existed before. It aimed to produce a condition of things more in harmony with a normal and peaceable trade. Its English successor, the Northwest Fur Company, established in control of the region after the war of 1812, was still more powerful. After consolidation with its rival, the Hudson's Bay Company, its charter rights were extended, and, although only a trading company, the necessities of its position led it to the exercise of many of the functions of a civil government. Its control of its large number of employees was complete; its power over the native races was absolute; by judicious methods and quick retribution for offenses, it succeeded in rendering the wilderness a safe place for traders, explorers, and missionaries. Moreover, the possibilities for trouble which arose from the coming of American trappers and traders led to an additional step in the development of civil government, and one which more properly falls under that head.

In 1821 the English Parliament passed a bill by the terms of which the laws of Canada were extended over English subjects operating in the country to the south. Provision was made for justices of the peace, before whom cases were brought, and, if sufficiently important, were sent to the courts of Canada.^[1] In this way, then, did the English government follow its subjects, and become the first real civil government exercised in the country, although it was exercised in the interests of only part of the inhabitants. England had found a way to look after her subjects without violating the strict terms of the treaty of joint occupancy.

The office of justice was held by officers of the fur trading company, whose power and prestige was thus increased. The history of government for about twenty years is summed up in the person of one man, Dr. John

McLoughlin. The exercise of authority by that masterful character of early times still lives in the minds of the oldest pioneers, and has found expression in many of the records which constitute the sources of Oregon's history. Although the official agent of the English company, a Scotchman by nationality, a Catholic in religion, and loyal to all the interests he represented, he was a man of too large a mold to be anything other than the instrument of justice and good order for all classes of people who might come within the bounds where his jurisdiction was exercised. "From 1823 to 1845 he was the controlling power in the country, and did more than any one else to preserve order, peace and good will among the conflicting and sometimes lawless elements of the population."^[2] Autocratic in his methods and strict in the enforcement of justice, he was yet kindly and merciful. His tours about the country to settle any difficulties that might have arisen in any of the trading posts, or agricultural settlements of ex-employees, were regular features of the early days, and were very effective.^[3]

The inability of the independent fur trader to compete with the English company, and the comparative advantage that the English subject had in the protection by his country's laws, naturally led to a feeling of dissatisfaction on the part of the American trader, and a belief that under the cover of a business enterprise the English civil government was gradually settling itself over the country to the exclusion of the American, whose interests and rights were equal according to the treaty of joint occupancy. That John Jacob Astor had not renewed his enterprise after the restoration of the fort at Astoria at the close of the war of 1812, was due to the refusal of the government, during Madison's administration, to guarantee his company the protection of the United States in case of trouble.^[4] Had that been done, company would have been in competition with company, and the conditions would have been more equal. As it was, however, the United States' interests were represented and her hold maintained only by such independent traders and trappers as ventured into the country, and usually failed of maintaining themselves for any great length of time.

It was such a condition of affairs that came to the knowledge of the people, and finally reached those channels where it gained entrance into our national policy. It was a significant circumstance in the history of civil government in Oregon, that, in the winter of 1820 and 1821, four men were thrown together at a hotel in the City of Washington.^[5] Two of them,

Ramsey Crooks of New York and Russell Farnham of Massachusetts, were traders who had been connected with the unsuccessful enterprise of Mr. Astor. The other two were members of congress, John Floyd of Virginia and Thomas H. Benton of Missouri. Mr. Benton had for some time been interested in the question, and had been pondering upon a method of procedure. During this period of acquaintance they talked much together and became convinced of the advisability of an aggressive campaign for the protection of American trappers and traders, and the maintenance of the full American rights in the joint territory.

There were probably no better men to take the leadership in a movement of this kind than Floyd and Benton. Both were western in their training and in their sympathies, and both were enthusiastic in any movement pertaining to a westward extension of the country. Western men were already beginning to have weight in the national councils, and were exerting a distinct influence upon national policy. Although rough and unskilled in many of the essentials of good government, their influence tended toward a true American life and a broader idea of American national destiny.

The course upon which they entered, though carefully considered, was a bold one. The Oregon country was very far off and few knew very much about it. It seemed a land so far away that the American people, as a whole, had nothing to do with it. Perhaps they had heard of the Oregon river, and it had a place in their imagination along with the ideal beauty of Bryant's poetic country; perhaps they had learned of the part performed by Captain Robert Gray and his ship Columbia in crossing the bar at the mouth, and revealing to the knowledge of his country and the world another great river; perhaps they knew of Jefferson's romantic interest in the country and the expedition which he sent under Lewis and Clark; they probably knew that fur traders had gone there, and that an American fur company, at the time of the war of 1812, had been forced to sell out and its place taken by an English one; they knew that there was an American claim, which was felt to be quite strong, and that a treaty had been made with England providing for a joint occupancy; but there was no consciousness that the question was one of practical importance to the existing generation, except on the part of the more far-seeing. The people's representatives in congress were more conservative than the people themselves, and a conception of the larger United States had taken possession of but a few.

The executive department was in advance of the legislative, for James Monroe was President and John Quincy Adams, Secretary of State—two men who were at the front in the breadth of their political ideas, as shown by the Monroe doctrine, originated by Adams, endorsed and declared by Monroe. In the clause that refused to European powers the right longer to colonize on American territory, it was the Oregon country that was thus protected against the aggressions of Russia at the same time that a hint was given to England. No executive had been more courageous in asserting the intention of the United States to maintain her larger interests, and none had been more disposed to follow with national protection, so far as conformed with treaty relation, her citizens who were leading in the westward expansion of the country.

Under such conditions what might the champions of an aggressive campaign expect to accomplish? Minds were filled with many questions. What was it right to do, and what was expedient; could a military post be established in the country as the President and Secretary wanted; could lands be granted to settlers as prospective emigrants wanted; could settlements be made and a civil government established as Floyd and Benton wanted? If it was right to do these things, was it expedient to do them, with the possibility of jeopardizing other interests less remote; was the nation ready to commit itself to an expansion of territory which might bring about many changes, and perhaps many dangers?

It was the work of these men, by patient, persistent and continued effort to arouse a sentiment favorable to American interests, to gather and disseminate such information as would help to make a public opinion, and to keep the subject before congress and the people all the time. Confident themselves in the value of the country to the United States, and of the right of title to the country, they were anxious for a movement looking toward permanent occupation.

It was a memorable day in the history of civil government in Oregon, when, in December of 1820, Floyd initiated his policy in the house, by a motion for the appointment of a committee to inquire into the situation of the settlements on the Pacific, and the expediency of occupying the Columbia River.^[6] It did not attract much attention at the time, but was referred to a committee, of which Floyd was chairman. In a carefully prepared report, containing all the information that could be secured, the

plan was pronounced expedient and a bill proposed to carry it into effect. This bill provided for the military occupation of the Oregon Territory, the extinguishment of the Indian title to the land, and the establishment of a civil government. It was nearly two years, however, before it could be brought to a discussion, on account of the dilatory tactics of the opposition, or because of its apparent unimportance. After it was debated it failed of passage by a vote of one hundred to sixty-one, which was not a bad defeat considering the character of the bill.

The same process was gone through again, another committee appointed, and another bill reported, which was similar to the first one, except in the greater inducement to settlers in the granting of lands, and in the greater stress laid upon the necessity for some plan of civil government in the territory. This bill, after discussion, was passed by a vote of one hundred and thirteen to fifty-seven, and Floyd had the satisfaction of seeing such a flattering result from his four years of hard work. He had done all that he could do and now it must be submitted to the tender mercies of the senate. Mr. Benton had already introduced a resolution "instructing the committee on military affairs to inquire into the expediency of making an appropriation to enable the President of the United States to take and retain possession of the Territories of the United States on the Northwest Coast of America;" and he had made a strong speech in advocacy of the movement. Although the resolution was adopted, no report ever came from the committee. When the bill came from the house, after several times being laid on the table and taken up again for discussion, it received a final defeat by a vote of twenty-five to fourteen.

For three years nothing was done. Then Floyd, with a tenacity worthy of the cause, proposed another bill. It resembled the others, but during the process of discussion was stripped of one feature after another until the only provisions left for government were the establishment of military posts, and the right of American citizens to trial in American courts, and under the laws of the states into which they might be brought. It will thus be seen that all previous propositions had gradually been reduced, by a process of elimination, to a provision exactly similar to the one which the English already had in operation, except the additional feature of military posts, and although this was the most moderate bill yet offered it was defeated by a vote of ninety-nine to seventy-five.

As Floyd's term of office expired and he was not returned, the first campaign for the extension of American civil government over Oregon was ended. Both Floyd and Benton had done nobly. In the face of opposition, and even ridicule, they had persistently held their course until they had seen their measure pass one house, and though defeated, get a respectable vote in the other. In their work they had valuable assistance. Several strong supporters appeared in the house and in the senate, particularly among the younger men; President Monroe by his messages to congress urged the importance of establishing a military post at the mouth of the Columbia, and along the route across the country; John Quincy Adams, by his assertions in regard to the validity of the American title to the country, and later on by his messages, strengthened their case; the War Department, then under John C. Calhoun, made a report through one of its most trusted authorities, General Thomas S. Jesup, who strongly advocated military occupation; while at least three associations of citizens from Massachusetts, Louisiana, and Ohio presented memorials to the house, asking for grants of land and the protection of the American government. The Massachusetts memorial was the result of the zealous work of Hall J. Kelley, a school teacher of Massachusetts, who was an enthusiast upon the settlement of Oregon, and who had been agitating the question both in his own state and in the City of Washington for several years before it was taken up in congress.

While great credit is to be given the far-sighted and courageous advocates of the bill, it is not fair in a historical paper to minimize the efforts of the opposition. To characterize the opponents as ultra-conservative or self-interested would not be just to the many weighty arguments which they brought forward, and which, looked at from the standpoint of their day, were weightier than they seem now, when conditions have so changed. For a new nation, with a new national machinery, hardly yet in smoothly running order, to attempt expansion into regions separated by natural barriers, and inaccessible before the application of steam to travel, might well require careful thought.

This first attempt, though it had failed of accomplishing its immediate end, was highly creditable to all who were engaged in it, and its results were not small. Interest had been awakened, not alone among the members of congress, but more particularly among the people throughout the country.

Circulars containing all the information available, were prepared and sent to the constituents of congressmen, and the nation began to be committed to a policy which it would take time fully to realize. The people had gained the impression that the United States' title was perfectly clear to the whole valley of the Columbia; that the English were there only by sufferance until the formal settlement of a boundary at a more convenient time; and that the government was willing that American immigrants should occupy it, and would protect them as well as it could.

The debates which occurred at various times in connection with these early bills are interesting, not alone because they mark the beginning of a large and important national movement, but also because of the light they throw upon the times, because of the discussion of important principles which always come to the surface in large national questions, and the fine examples of courage and far-sighted aggressiveness on one side, and cautious conservatism on the other. Almost every point of view which it would seem possible to conceive of found expression in some form or other in the course of the debate; and almost every motive for or against the policy was voiced.

In this first debate the question of the claim does not figure largely, as it was quite generally assumed by all that the American title was valid, and was so pronounced by those in whom the people had confidence. There had been, however, no critical examination of the subject as yet on either side, but the American government felt so confident that it did not realize any necessity for haste.

In the first place it was incumbent upon the advocates of this measure to show the expediency of their proposal. They had been called visionary and fanciful. That it was only the continuation of a growth that had characterized all our past history, was well expressed by Floyd in the words: "At most it is only acting upon precisely the same principle which has directed the progress of population from the moment the English first landed in Virginia." In the various reports and debates much emphasis was placed upon the material benefit which would follow. By statistics, the value of the fur trade was exhibited as well as that of the whale fisheries, the returns from which two industries alone would many times repay all expenses incurred; while the possible resources in the line of agricultural wealth, though scarcely known, were boldly prophesied.

While some regarded the measure as visionary, others opposed it because it seemed too practical, would draw capital and labor from the older sections, where they were still needed, and would beget a trade with the Orient which would detract from that of the Atlantic Coast. No friend of the measure could have painted a bolder and more prophetic picture than that of the opponent who said: "The trade of the Pacific will naturally be with China, Japan, and the Philippines. They will not only be invited to this by their local position, but by the circumstances of their situation. Commerce is never so profitable as when it is carried on between a newly settled country, in which land is fresh and easily obtained, and one in which a dense population has made manufactures cheap and abundant." Considerable importance was attached to the establishment of a waterway connection by the river systems of the Missouri and Columbia, between the east and the west, "when distance and time will be conquered, and the ends of the earth be brought together." Should this prove feasible, and statistics were not wanting to demonstrate it, the United States would have the proud distinction of establishing that waterway for which the nations had been so many centuries in search.

Attention was called to the value to the nation there would be in the encouragement of the fisheries, for the training of seamen, and the advantages of a naval station at the mouth of the Columbia in case of war with Great Britain. General Jesup suggested that troops stationed there could be used in removing the British from the territory when the time came to settle the boundary. Such propositions were not palatable to the English, nor were they especially calculated to hasten a friendly settlement of such diplomatic proceedings as were necessary at a later time. They rather served the purpose of strengthening whatever purpose the English had of looking out for their own interests. But they were clearer and more forcible announcements of the view of the American people than England could get through the diplomatic service.

In the history of civil government in Oregon there are two distinct movements, that of the regularly organized government, and that of the people themselves. They serve as the complement of each other, and act and react upon one another in a multitude of ways. Every time that the question was before congress it reacted upon the people, and the impetus thus set in motion again reacted upon a slower moving congress. In the westward

expansion of our territory the movement of people has always preceded that of the national government. In the case of Oregon, through remoteness of the territory, and the difficulties arising from the joint claim and occupancy, the quicker movement of the people was more marked and the corresponding slowness of the government more irritating. This feeling of restriction is expressed by Floyd in the words: "All governments, republican as well as royal, take upon themselves the exclusive privilege of thinking for the people, of checking the progress of population in one direction or fixing the boundaries to it in another, beyond which they are not permitted to pass."

It had often been stated in the debate that a superior power had set the Rocky Mountains as the western boundary of the United States, and it is interesting to know that the following reply came from a representative of Massachusetts: "As we reach the Rocky Mountains, we would be unwise did we not pass the narrow space which separates the mountains from the ocean, to secure advantages far greater than the existing advantages of all the country between the Mississippi and the mountains. Sir, our national boundary is the Pacific Ocean. The swelling tide of our population must and will roll on until that mighty ocean limits our territorial empire. Then, with two oceans washing our shores, the commercial wealth of the world is ours, and imagination can hardly conceive the greatness, the grandeur, and the power that await us."^[7]

There were other objections which seemed far more weighty than those of material inexpediency. The principle of colonization which would be forced upon the United States was regarded as a menace. "Should this principle now be recognized, it may hereafter be quoted as a precedent for measures which will change the condition and nature of the government, an event to be intimately associated with its destruction, or at least with the prostration of that liberty for the protection of which alone we can wish the government to exist." Although it was shown that the probabilities were that the territory would become an integral part of the United States, yet the champions of the west were undaunted in defending colonization if it should come to that. Again it was the representative from Massachusetts who replied: "Was Great Britain more powerful, wealthy and happy before she began to colonize than now? Notwithstanding all her exhausting wars, all the drain of her colonial emigration, she was never more populous, more

wealthy or more powerful than she is at this present day. Colonization does not impair the strength or diminish the wealth of nations. Some now within these walls may in after times cherish delightful recollections of this day when America, almost shrinking from the shadow of coming events, first placed her feet upon untrodden ground, scarcely daring to anticipate the grandeur which awaited her.”^[8]

Equally great was the fear of entanglements with foreign nations, and particularly war with England because of a violation of the treaty, an objection which, perhaps, weighed most heavily in defeating the bill. Nor was this objection ungrounded considering the newness of the nation and the necessity of a period of peace for knitting together the internal fibres of strength. For this there was, of course, no demonstration, nor could it be opposed by proof, and yet there was courage in the answer: “Arguments founded on what may happen would go equally to prove the futility of establishing a navy which may be captured by an adversary. If a measure is right in itself it is unwise to reject it because its beneficial effects may be defeated by a war.”

As might be expected in those days, every question must be tested by its effect upon the Union. The desire to perpetuate the Union, so dearly purchased, has laid at the foundation of many a policy. For its sake many things, desirable in themselves, have been given up or long delayed. That the national government could operate over a territory so vast, and regions so remote, with barriers separating them geographically from other sections, was questionable in the day before railroads and telegraphs. Yet, with a confidence inspired by their belief in the right of their position and in the final adjustment of national affairs to this action, the advocates of the measure argued that it would rather strengthen than weaken the Union: “The danger of separation would be less in a confederacy of twenty or thirty states with diverse interests than in one of smaller number,” because the multiplication of interests would neutralize divisions which grow strong where the number is small.

Lastly, it was held that there was no need for present action, that no request had been made by the business public; it was a question to be settled not by the present generation, but by the one to follow, and that no harm, either to the American title or interests, could result.

In the senate the discussion was briefer, but covered essentially the same ground. Benton took the leading part in favor of the bill, but received help from one of the senators from Virginia. The opposition cast much ridicule upon the idea of a senator going to and from Washington in less than a year, either by land or by water, around Cape Horn.

It is not possible in the compass of this paper to give a full account of this interesting debate, but only so much as will characterize the first movement toward governmental control by the United States. As we retrace the discussions, in the light of subsequent events, we cannot refrain from admiration of those who optimistically trusted that the measure, if right in itself, need cause no fear of danger in the future.

After the retirement of Mr. Floyd no leader appeared to continue the work begun, and consequently the subject dropped out of legislative discussion for about ten years, with the exception of an occasional resolution and a brief discussion. The interval of rest, however, was not such as follows the defeat of a measure, but was, rather, a period of preparation for another and greater effort. Many influences were set in motion which showed that the national consciousness was beginning to work. It was during this interval that Captain Bonneville and Capt. Nathaniel J. Wyeth made such heroic attempts to establish a trade west of the Rocky Mountains, with experiences equalling anything in romance. In a letter to his brother, Captain Wyeth says:^[9] “The formation of a trading company on a similar plan to the Hudson Bay and the Northwest is the ultimate object of my going to that country.” Before starting he offered his services to the government for the purpose of gaining information for them, and without “other compensation than the respectability attached to all those who serve their country.” Whether his offer was accepted or not does not appear from the correspondence, but the entrance into the country of such a man, with his companions, must mean a great deal in the clearing up of obscure questions. It was at this time, also, that Hall J. Kelley, who had been such a persistent and patriotic advocate of settlement, reached the country. Disappointed in not being able to secure grants of land and the protection of the government, he reached Oregon, after many hardships, with a few companions, and began the nucleus of a little settlement. Equally important was the impulse which missionary activity in the East had received from a fuller knowledge of this new and attractive field. Thus the

religious motive was added to the patriotic, and both were added to the zeal for trade and adventure, in drawing attention to the new country.

Although the United States Government would give no guarantee of protection, yet the new arrivals met in those regions a condition of safety rarely found in so wild and remote a locality, and, for the time being, at least, were glad to avail themselves of the security offered by the Hudson's Bay Company. Nor is it to be supposed that the colonists were entirely neglected by the Government of the United States. Though unable to grant fully the wishes for a civil government, or even for military posts, yet every executive took measures to gain such information as would keep the government well advised, and enable it to see that the brave forerunners of settlement suffered no personal injury. The interval of rest fell within the administrations of President Jackson, and his policy seems to have been one simply of watchfulness and the gaining of knowledge. To this end William A. Slacum, of the United States Navy, was appointed as a special agent, to visit Oregon and examine the conditions. This is important, as marking the policy the government intended to pursue while things were in process of transition. If the protection given was not adequate, it at least dispels the suspicion of utter heartlessness which would attach to a government which would let its citizens go, in support of its own interests, into this wilderness, without a single thought for their safety.

When the question, therefore, next came up for discussion, conditions had considerably changed. Traders had ventured into the country, missionary stations had been established, more knowledge of the country had been gained, a more careful examination of the title had been made by the conference which met in 1827, and the cause had enlisted the interest of some of the strongest men in political life.

In the second campaign the initiative was transferred from the house to the senate, and an able leader was found in the senator from Missouri, Dr. Lewis F. Linn. He was the colleague of Benton, and a man commanding the highest esteem of his associates. The attack began by a bill of February, 1838, for the occupation of the Columbia and the establishment of a civil government similar to previous bills. Meeting with failure, it was followed, as in the previous campaign, by several others, and, in spite of the assembling of the conference for the settlement of the northeastern boundary, in 1842, the discussions were carried on with a nearness to that

event which seemed dangerous to Mr. Linn's associates. Shortly after the adjournment of the conference the discussions were renewed. As in the case of Floyd's bills, there was a gradual toning down of the provisions, in the successive sessions of congress, so that the movement which started by advocating the establishment of a territory to be called the Oregon Territory, erection of a fort on the Columbia, occupation of the country by a military force, the establishment of a port of entry subject to the revenue laws of the United States, ended by advocating a line of forts along the route to Oregon, a post near its mouth, a grant of six hundred and forty acres of land to every male settler cultivating the land for five years, appointment of Indian agents to regulate affairs with the native races, and extension of the jurisdiction of the courts of Iowa over the territory west of the Rockies. The bill provided an increase of judges, justices, and constables, to meet the increase of business, and English subjects charged with criminal offenses were to be given up to the English courts. This bill passed the senate by a vote of twenty-four to twenty-two, in February of 1843, but failed of passage in the house. Thus Linn, like Floyd, was rewarded for his service by seeing his measure pass the house of which he was a member, but any further hopes were cut off by his death before the next session of congress.

The discussions bring out little that had not been said before. The question of the claims, which had figured so little in the previous debate, was an all important theme of discussion at this time. The language used shows a growing feeling of bitterness toward the English, and anxiety to secure such an arrangement as would encourage emigration. The large grants of land were especially for that purpose. It was in the course of this debate that Mr. Benton used these words: "I now go for vindicating our rights on the Columbia, and as the first step toward it, the passing of this bill, and making these grants of land, which will soon place thirty or forty thousand rifles beyond the Rocky Mountains."^[10]

In the course of the discussion, Linn's policy had received many reinforcements from without. It was about this time that the naval officer whom President Jackson had appointed, made a report which showed the need of action. In the beginning of the new agitation of the question, the Rev. Jason Lee, head of the Methodist missionary movement in the Willamette Valley, appeared in Washington. He had performed the long and dangerous journey across the plains, partly in the interests of his mission

and partly in the interests of settlement and a civil government. Although a Canadian by birth, he early identified himself with American interests as best adapted to the successful accomplishment of his missionary enterprise. Although he had gone into the country in the interests of the natives, he was soon convinced that their interests would be served not alone by laboring with them, but by building up a moral and religious community. He was the bearer of a petition to congress from the colonists. It was signed not alone by those connected with the mission, but by some of the French and Canadian ex-employees of the Hudson's Bay Company, who had started an agricultural settlement on a beautiful tract of land called the French Prairie, in the Willamette Valley. This document set forth the history of the mission settlement, the prosperity which had attended it, the resources of the country for agricultural purposes, the advantage of its position for trade with China, and urged upon the United States the extension over it of a civil government, both in the interests of the colonists and of the country at large. It showed how the nucleus of a settlement was started; it dwelt upon the previous dependence upon the Hudson's Bay Company, a relation which could not be expected to continue long in the changing conditions. While in the east, Mr. Lee delivered lectures at various points, and exhibited two Indian lads whom he had brought with him. In reply to inquiries from Hon. Caleb Cushing, who led the debate in the house, and who had been appointed upon a committee to make inquiries, he wrote a letter containing these significant phrases. "The country will be settled, and that speedily from some quarter, and it depends very much upon the action of congress what that population shall be, and what shall be the fate of the Indian tribes in that territory. It may be thought that Oregon is of little importance, but rely upon it, there is the germ of a great state. We are resolved to do what we can to benefit the country, but we are constrained to throw ourselves upon you for protection."

Other petitions were also received from the colonists which were stronger in their wording, exaggerating some things, and even making representations which, because of too hasty conclusions, were misrepresentations of the facts. They were, however, well adapted to be of service in the struggle for results. Petitions were likewise received from bodies of prospective emigrants, who asked for action by the legislature in granting lands and in furnishing the protection of the government. Memorials from Nathaniel J. Wyeth and Hall J. Kelley also were presented

to the house by Mr. Cushing, and gave information concerning the physical and social conditions west of the Rockies. In this second campaign the executive support was more conservative than had been given by Monroe and Adams. It was the recommendation of President Van Buren to congress, that garrisoned forts be established along the route for the protection of emigrants, for he thought that the gradual settling of this country would so far prepare the way for an adjustment favorable to American interests, that the possession of the country and the establishment of a civil government would be effected without danger. The failure, likewise, of the conference of 1842 to conclude the settlement of the northwestern boundary at the same time that it fixed that in the northeast, was a great disappointment to the people, who had been expecting some action. President Tyler felt it necessary to offer an explanation in his message to congress in which he referred to the fear of a protracted discussion, and the obstructions that might have been put in the way of settling the northeastern boundary by connecting it with a discussion of the northwestern.

This debate, like the previous one, was fraught with significant results, and the gain was substantial. Although it had failed of its immediate purpose, although it had been defeated in that body of congress in which it might most naturally look for success, and although the leader of the cause in the house, Hon. Caleb Cushing, counseled delay, because of the danger of complications with England, the effects, nevertheless, became apparent even before the debate was ended. Through the suggestion of Mr. Lee, an immediate step in advance was taken. It was decided that the government could, without violating the terms or the spirit of the existing treaty, send some one who should act as an agent of the government in dealing with the Indians, whose duty it should be to make treaties with them and establish such relations as would insure safety during the period of transition. This officer was to bear only the title of sub-Indian agent, but it was suggested to the colonists that his usefulness to them might be increased by entrusting him with such additional authority as they thought fit to grant voluntarily; that he might, if they so wished, act as a virtual governor of the colony. It will readily be seen that this office, by virtue of its indefiniteness, was one of peculiar difficulty. The effectiveness of the plan was also considerably diminished by the appointment of a man, Dr. Elijah White, who had previously been in the country and incurred some enmities. He was, however, cordially received, and entered upon his duties with hopefulness.

The growing hostility of the Indians made immediate and almost continuous exercise of his authority necessary, and many treaties were made pledging the natives to respect the life and property of Americans. The previous authority of the English company had now to be shared with the American government, so far at least as Indian affairs were concerned. Thus a step in advance had been taken toward the realization of an American civil government, but it is questionable whether divided authority in dealing with Indians tended to security of life and property, especially where there was no means of enforcing the obligations of treaty agreements. In the exercise of authority along other lines, less success was experienced.

Another result was the sending of Lieutenant Charles Wilkes, Commander of the Pacific squadron, upon a cruise along the coast, with instructions to make investigations, and General John C. Fremont, to examine the overland routes. Both of these men were officers in whom confidence was reposed and whose opinions would have weight. The government did not recognize the need of such urgency of action as the people desired. It seems to have felt that its duty was discharged by commissioning officers to investigate the condition of things, by ordering an occasional vessel of war into the neighborhood, and by sending a sub-Indian agent to prevent any depredations that the Indians might be disposed to commit. It seems to have felt that the few colonists already there were in no immediate danger of suffering injury, if they used good judgment, while the natural barriers to emigration would render additions to the population very slow.

Viewed from the standpoint of the colonists, however, everything was different. The Indian agent, without military aid, could not render effective service; Lieutenant Wilkes, because he was on friendly terms with the officers of the English company, was thought to be too much under their influence; session after session of congress was passing away without any action for the establishment of military posts, or the extension of civil government over the territory. It is but natural, under the circumstances, that the colonists should take the matter into their own hands, and do what the exigencies of the situation demanded. The formation of the pioneer provisional government may be regarded, therefore, as an example of the true American spirit, exhibiting a resourcefulness equal to every emergency.

The origin of institutions is complex, and doubtless many motives combined to bring this one into existence. Its purpose as expressed in the organic laws, drawn up as the constitution of the state, was declared to be: "Mutual protection, and to secure peace and prosperity among ourselves."^[11] This general statement, however, probably sums up a number of motives not specified. Most prominent among these were the feeling of nationality, the love of a democratic type of government, the desire for power to control the character of population that should come in, anxiety to secure permanent titles to the lands taken up, equal rights in the pursuit of the fur trade, protection from the Indians, prevention of lawlessness among a mixed population, facilities for the conduct of such business as growing numbers made necessary, and, perhaps, in some cases, personal ambition to exercise authority.

The idea seems to have had its origin among the missionaries and settlers in and about the Methodist mission station in the Willamette Valley. Although the subject had been under consideration before, the first effective step taken was in February, 1841, at the funeral of a settler, who died without heirs, and for the administering of whose estate there was no authority then in existence. A resolution was passed, expressing the need of a civil government, and a call was given for a general meeting to be held at the mission. At this meeting a committee was appointed, consisting of the various elements into which the community, though small, was divided, and was instructed to draw up a plan of government and report at a specified time. A judicial officer with probate powers, together with a sheriff and two constables to meet immediate wants, were also appointed. Although an attempt had been made, in the choice of the committee, to secure harmony, yet it never met to fulfill its task. When the general meeting, therefore, assembled at St. Paul's church, the Catholic mission station, there was nothing to report. The committee was reconstructed and a resolution passed to submit the matter to Dr. McLoughlin and Lieutenant Wilkes before further action was taken. As both of these men advised delay the matter was dropped for two years.

The idea, however, was kept alive, and was the subject of discussion at the meetings of a debating society at Willamette Falls, now Oregon City. The subject was again formally suggested at a meeting held at the house of one of the settlers, for the purpose of taking measures to protect the cattle

from wild animals. At the close of a series of resolutions dealing with wolves, bears and panthers, was one calling attention to the need of a civil government, and providing for a general meeting for discussion and decision. The meeting was held as provided May 2, 1843, at Champooick, between the present sites of Salem and Oregon City, and was an occasion of great interest and excitement. Opinion had been shaping itself on both sides, and the opposing views were fully represented.

The principal cause for anxiety was the body of Hudson Bay ex-employees, who were located in the valley. Most of them were French or Canadians, Catholics, and largely under the influence of the English Company. Although some of them were favorable to a government, the majority were not, and their views are quaintly summed up in an address prepared for presentation at a later public meeting. They objected to a provisional government as too “self-interested and full of degrees, useless to our power, overloading the colony instead of improving it.” They proposed in its place a council, composed of men from all parts of the country “to judge the difficulties, punish the crimes and make regulations suitable for the people.” They regarded a militia as useless and “a danger of bad suspicion to the Indians.” The country was considered as “free at present, to all nations, till government shall have decided; open to every individual wishing to settle, without distinction of origin, and without asking him anything, either to become an English, Spanish or American citizen.” There were also some general reflections to the effect that, “The more laws there are, the more opportunity for roguery for those who make a practice of it;” and “in a new country, the more men employed and paid by the public, the less remains for industry.”

It was known that the vote was to be close. The Canadians had been drilled to vote “no” on every proposition, and their strength was determined in an amusing way, by moving a question to which they would naturally have voted “yes.” When the question of having a government was put to a vote the result was so close, that the chairman was in doubt. A division of the house was called for, and at this critical point, Joseph Meek, a typical frontier character, strode forward with the words: “Who’s for a divide? all in favor of the report and of an organization, follow me.” When the vote was counted, it was found to be in favor of a government.

After this decision had been made there was still a difference of opinion concerning the kind of government to be established. Some were in favor of complete independence, while others wanted a provisional government that should last until that of the United States should be extended over the country. The English interests, unable longer to prevent some action, now directed their influence toward securing an independent government, under the protectorate of England, if possible, and independent of the United States at any rate. The decision favored a provisional government, and a committee of nine was appointed to draft a plan to be submitted to the people at a meeting to be held at Champooick on the fifth of July, 1843. This committee is of great importance in the history of civil government in Oregon, because of the responsibility which rested upon it, and because of the excellence of its work. Its members were neither learned nor acquainted with the law, but they possessed good judgment and common sense. Their meeting place was an old barn belonging to the Methodist mission.

In the drawing up of their organ of government they very wisely adopted the ordinance of 1787, making such changes as the peculiar local conditions rendered necessary. There was, first, a bill of rights, providing for freedom of religious belief and worship, the right of *habeas corpus* and trial by a jury of peers, proportionate representation, judicial procedure according to common law, moderate fines and reasonable punishment, encouragement of morality and knowledge, maintenance of schools, good faith toward the Indian, and the prohibition of slavery. There was, also, provision for the necessary organs of government, a legislative branch, to consist of nine members, elected annually; an executive branch, to consist of a committee of three; and a judicial department, to consist of supreme and associate judges, a probate judge, and justice of the peace. Provision was made for subordinate officials, a battalion of soldiers, and grants of land to settlers. On the appointed day the meeting convened at Champooick to receive the report. It came, opportunely, on the day following our national holiday. Although the general sentiment seems to have been friendly to the movement, yet there was enough variety of opinion to lend spice to the occasion. When the plan drawn up had been reported to the people, its provisions were readily passed. The principal discussion took place in regard to the executive. It had not been the purpose to have any executive at all, on account of the rivalry for the governorship, which unfortunately existed at a time when united action was desirable. The committee, upon

their own responsibility, had recommended as a compromise an executive committee of three. Although it was characterized by the opposition as a “hydra-headed monster,” and a “repetition of the Roman Triumvirate,” it was finally accepted.

After the adoption of the organic laws, and the election of the necessary officers, the government went into operation. It had no provision for taxation, and its expenses had to be met by voluntary subscription. It had no public buildings, and for a time had to meet at private houses. It soon became apparent that there were defects in the plan of government as at first adopted. It was found to be unfitted for governing a community of any large number, or for any long period of time. It had been prepared only for a temporary purpose, and only for a short time. Its very imperfections, however, were virtues to those who feared that a more perfect government would lead to independence from the United States, which was an all-absorbing question among the colonists and the basis of their party distinctions. As time passed, however, and the United States took no action toward extending her government over the colony, it became apparent that something must be done to make the provisional government stronger and better fit to endure a longer delay, and to govern more effectively the larger numbers which were coming into the country. The first message of the executive committee, therefore, contained the following words: “At the time of our organization it was expected that the United States would have taken possession of the country before this time, but a year has rolled around, and there appears little or no prospect of aid from that quarter, consequently we are yet left to our own resources for protection. In view of the present state of affairs, we would recommend to your consideration the adoption of some measures for a more thorough organization.”^[12]

The changes recommended were: Creation of a single executive in place of a committee of three; increase in the number of representatives in the legislative department; change in the judicial system, together with changes in certain specific subjects more of the nature of statute than fundamental law. The recommendation was followed and the changes were made. This first session of the governmental body, indeed, was prolific in legislation. Not only did it make these changes, but an act was passed more exactly defining the jurisdiction of the government. In the original plan it had been vague, and was by this act confined to the region south of the Columbia

River. Provision was likewise made for the raising of revenue sufficient to carry on a more effective government, and all who refused to pay their taxes were denied the right of suffrage and the benefits which the government conferred. This was an effective mode of winning the support of some who had stood aloof. Acts were passed prohibiting the manufacture and sale of intoxicating liquors, and negroes and mulattoes were excluded from the territory upon penalty of whipping. It was the desire of the members of this first legislature to call a constitutional convention for making the organ of government more perfect and putting the changes already made into permanent shape. It met with opposition, however, because of the fear that it might drift into an independent government, toward which there was in many directions a strong tendency.

The session of 1845 was made up largely of the American party, and these men soon began the work of making what they refused to call a “constitution,” but called a revised “compact,” to be submitted directly to the people. The compact secured most of the changes already made, drew a distinction between statute and fundamental law, was well worded, and removed the vagueness of previous provisions. This was in accordance with the sentiment which existed in the colony, and was, therefore, adopted by vote of the people at a special election, July 26, 1845. These changes were made possible by the greater legal talent which came with the migrations of 1843 and 1844, and were made necessary by the increase in population and the delays of the national government. For three years longer the provisional government was in force, exercising all the sovereign functions of government; and, before superseded, it carried on a war with the Indians.

Thus came into existence that government which has been characterized by one who was in a position to know as, “strong without an army or navy, and rich without a treasury;” so effective “that property was safe, schools established and supported, contracts enforced, debts collected, and the majesty of the law vindicated.”^[13] This is a judgment quite generally endorsed by the oldest of the pioneers who look back to it with pride and affection.^[14]

The formation of the provisional government met with no opposition from congress or the President. In fact, there is nothing to show that it received any formal attention at all. It was, however, whether so recognized or not, a long step in advance. All that the United States government could

wish to accomplish in securing an equal foothold in the territory, was brought about without action on its part and without complications that might have accompanied an extension of a United States territorial government over the country, as provided by the various bills. Every issue which the government itself could have forced, was forced by the pioneers themselves. A permanent break was made in the old order of things; the fur trading regime was forced to give place to an agricultural civilization. The way was prepared for a distinctly American government. The final settlement of the Oregon question was made easier than it otherwise would have been; and a splendid demonstration was given of the fact so often seen in the history of nations, that crises are settled most effectually by the people of the nation themselves. The English made an effort to adjust themselves to the new conditions and preserve their old authority. But their autocratic social machinery, which probably had been best fitted for the period of the fur trade, was unable to cope with the democratic provisional government in meeting the needs of an agricultural settlement. It was the passing away of one type of social order as the conditions themselves changed, a fact well verified by the cordial support the new order of things received from many who had opposed its formation.

The effect of the change upon the Indian people was more serious. The passing away of the old was fraught with great significance to them. The entrance of the new meant the gradual loss of their lands and the changing of their habits of wilderness existence. It was not long ere the new government found itself involved in difficulties growing out of these conditions, with which it was not able to grapple alone. When the time of greatest need drew near, however, it was possible to take another step in the gradual development of civil government, as it was necessary for the national government to take some steps in the protection of its citizens against the Indians. The events which led up to, and which made possible this result, so long struggled for, are as romantic and stirring as anything that has ever occurred in our history.

In tracing the influences which were at work to bring about the further steps in the development of civil government, we need, first, to note the effect produced by the treaty of 1842, which settled the northeastern boundary. That annoying question, which had been under dispute so long, had, by virtue of the anxious desire to reach a conclusion, done much to

retard the settlement of other questions of difference, particularly that of the northwestern boundary. But, now that the settlement had been reached, the way was clear for attention to this question by itself, and freed from its bearing upon other issues. Such a condition of affairs is surely a significant one in the development of our subject. Its immediate importance was, of course, connected with the boundary question; but the extension of a civil government was waiting upon that, and its fate inseparably connected with it. In his message of December, 1842, while explaining the omission of a settlement from the treaty just concluded, Tyler manifests something of the freedom gained, in a bolder statement than had appeared from the executive department for many years: "The territory of the United States, commonly called the Oregon Territory, lying on the Pacific Ocean, north of the forty-second degree of latitude, to a portion of which Great Britain lays claim, begins to attract the attention of our fellow citizens, and the tide of population, which has reclaimed what was so lately an unbroken wilderness, in more contiguous regions, is preparing to flow over those vast districts which stretch from the Rocky Mountains to the Pacific Ocean. In advance of the acquirement of individual rights to those lands, sound policy dictates that every effort should be resorted to by the two governments to settle their respective claims."

While the colonists were urging on the formation of the provisional government, and the national policy was pervaded by the greater freedom shown in Tyler's message, another influence was brought to bear toward the accomplishment of the result. It was in the spring of 1843 that Dr. Marcus Whitman, head of the Presbyterian and Congregational mission at Waiilatpu, near the present site of Walla Walla, appeared in Washington. He had made the long and dangerous journey in the winter season, when hardy mountain trappers would scarcely dare to try it. Almost frozen by the cold, and nearly lost in the blinding snow storms, he finally reached his destination. This heroic journey was made partly in the interests of his mission work, and partly to awaken such interest in the country that immigrants would come, and that the government would protect them in their coming. Although, before this time, he had been attentive to his work among the Indians, and, by reason of the location of his mission, had been compelled to exercise caution and reserve, yet he was always an ardent admirer of American institutions and looked forward to their final extension over the country. He was a quiet yet earnest advocate of the provisional

government, and was fully aware of the means by which further results were to be secured. The gradual settlement of the country by industrious and moral people, a strict and friendly observance of the terms of the treaty, a self-imposed system of government suited to existing needs, a final settlement of the boundary that would preserve the territory that rightly belonged to the United States, and a final incorporation into the nation when possible, would seem to express his position.

Both among the colonists and in the east the feeling was prevalent that in settlement rather than in congressional action lay the issue of the Oregon question. Heroic work had been done in congress, and heroic work was being done by the colonists themselves. There were indications, also, that the English were awake to the importance of settlement. Already they had a number of Canadian and French ex-employees of the company in the valley of the Willamette; a body of emigrants had just come to the country around Puget Sound, and various rumors were afloat of settlement on a larger scale. As the success of the Americans' hopes rested now on settlement, this was, indeed, a critical moment for the advocates of provisional government and the final extension of the institutions of their native land. It was a time for heroic action, and the journey of Marcus Whitman will always be named as one of the most significant, as well as romantic events in the history of civil government in Oregon.

Such an ambassador could not fail of a hearing, and conferences were held both with the President, John Tyler, and the Secretary of State, Daniel Webster. Dr. Whitman emphasized the value of the country, and what was more significant, the possibility of reaching it by wagon. Any abandonment, however, of the Oregon cause beyond a reasonable compromise, seems scarcely possible to one who has traced the government's relation to the question from the beginning. And even such a compromise would seem uncalled for, when the northwestern boundary question stood by itself freed from other objects. Some of the friends and associates of Dr. Whitman, however, are authority for the statement that some such sacrifice was in contemplation and had practically been made before his appearance in Washington. If the evidence that comes to light confirms the advocacy of such a policy by Mr. Webster, it would have been a surprise to every one, and would have met a storm of opposition when made public, and could hardly have been ratified, in view of the fact that popular interest had never

been greater, presidential support never more hopeful, and the records and traditions regarding the boundary line had never considered seriously any settlement below the forty-ninth degree of latitude.

Upon his return west in 1843, Mr. Whitman wrote to the Secretary of War an account of his journey, and the emigration that had gone west that year. It was the first large emigration, numbering about one thousand people, and had been guided through the mountains by Dr. Whitman, making the entire journey by wagon. Accompanying this letter was the draft of a bill providing for the establishment of forts at various points along the route for the protection of further emigration. This seems to have been done in accordance with an understanding, reached during his stay at Washington, and marks the policy of the government until the end was reached.

The succeeding messages of President Tyler are firmer in their tone and give more space to the subject. In the message of December, 1843, he said: "After the most rigid, and, as far as practicable, unbiased examination of the subject, the United States have always contended that their rights appertain to the entire region between forty-two degrees of latitude and fifty-four degrees and forty minutes. * * * In the meantime it is proper to remark that many of our citizens are either already established in the territory, or are on their way thither for the purpose of forming permanent settlements, while others are preparing to follow; and, in view of these facts, I must repeat the recommendations, contained in previous messages for the establishment of military posts at such places along the line of travel as will furnish security and protection to our hardy adventurers, against hostile tribes of Indians, inhabiting those regions. Our laws should also follow them, so modified as the circumstances may seem to require. Under the influence of our free system of government new republics are destined to spring up, at no distant day, on the shores of the Pacific, similar to those existing on this side of the Rocky Mountains, and giving a wider and more extensive spread to the principles of civil and religious liberty." Still stronger is the language of the message of December, 1844, when the notification of another conference is accompanied by the words: "The establishment of military forts along the route at suitable points upon the extended line of land travel would enable our citizens to emigrate in comparative safety to the fertile regions below the Falls of the Columbia, and make the provision of the existing convention for joint occupation of the territory more available than hitherto,

to the latter. * * * Legislative enactment should also be made which should spread the ægis over him of our laws, so as to afford protection to his person and property, when he shall have reached his distant home. In the latter respect the British Government has been much more careful of the interests of such of her people as are to be found in that country, than the United States. Whatever may be the result of the pending negotiations, such measures are necessary. It will afford me the greatest pleasure to witness a happy and favorable termination to the existing negotiations upon terms compatible with the public honor, and the best efforts of the government will continue to be directed to this end.”^[15]

But other influences were at work to bring about these changes. Then, as now, the scent of politicians for issues to place in their platforms for winning votes, were keen. And here was a question well fitted to their purpose. The southern wing of the democratic party was anxious to annex Texas in the interests of slavery, and an annexation of Oregon to satisfy the northern wing was a shrewd move to gain votes and place James K. Polk in the presidential chair.^[16] It was a bold stroke, and might easily bring on war with England. But now all the fears of entanglement, which had furnished the theme of many an eloquent discourse were thrown aside, and the country entered upon an exciting campaign, in which the rallying cry was “Fifty-four, Forty or Fight.” In spite of angry threats of war on the part of England, Mr. Polk was elected, and the administration was committed to a settlement of the question.

In his inaugural address, Mr. Polk referred to the subject as follows: “It will become my duty to assert and maintain by all constitutional means the right of the United States to that portion of our territory which lies beyond the Rocky Mountains. Our title is ‘clear and unquestionable,’ and already our people are preparing to perfect that title by occupying it with their wives and children. But eighty years ago our population was confined on the west by the ridge of the Alleghanies. Within that period our people, increasing to many millions, have filled the eastern valley of the Mississippi, adventurously ascended the Missouri to its head springs, are already engaged in establishing the blessing of self-government in the valley of which the rivers flow to the Pacific. The world beholds the peaceful triumphs of the industry of our emigrants. To us belongs the duty of protecting them wherever they may be upon our soil. The jurisdiction of

our laws and the benefits of our republican institutions should be extended over them in the distant regions which they have selected for their homes. The increasing facilities of intercourse will easily bring the states, of which the formation in that part of our territory cannot long be delayed, within the sphere of our federative Union. In the meantime every obligation imposed by treaty or conventional stipulation should be sacredly respected.” In the message of December, 1845, he said: “Beyond all question the protection of our laws and our jurisdiction, civil and criminal, ought to be immediately extended over our citizens in Oregon. They have had just cause to complain of our long neglect in this particular, and have in consequence been compelled, for their own safety and protection, to establish a provisional government for themselves. Strong in their allegiance and ardent in their attachment to the United States, they have been thus cast upon their own resources. They are anxious that our laws should be extended over them, and I recommend that this be done by congress with as little delay as possible to the full extent to which the British parliament have proceeded in regard to British subjects in that territory. * * * The British proposition of compromise, which would make the Columbia River the line, south of the forty-ninth degree, with a trifling addition of detached territory north of that river, can never for a moment be entertained by the United States.” Considerable space in the message was given to this subject, and recommendations were made for Indian agencies, custom houses, postoffices, and post roads, a surveyor of lands, liberal grants to settlers, the jurisdiction of the United States laws, and the required year’s notice to England of the expiration of the treaty of joint occupancy.

With considerable of the jingo spirit in the house, and with commendable moderation in the senate, a notice was finally prepared which would accomplish the result without giving offense. England, realizing that longer delay might only injure her cause, finally took the initiative and proposed the conference which met in 1846, and settled the boundary by a compromise at the forty-ninth degree of latitude.

The settlement of the boundary line was the result that had been looked for so many years, and it would seem that nothing longer stood in the way of a realization of the hopes of all who favored the extension of the national government as far as the Pacific Ocean. One after another the obstacles had been falling away. The knowledge and facilities of travel which enabled

yearly trains of emigrants to cross the plains were eliminating the element of distance. The advance of a sturdy population carrying westward breadth of views and force of character was deciding the national policy, and the settlement of the boundary line removed a multitude of difficulties which filled the whole period of joint occupancy. Why then should there be longer delay? Action was expected by the people, the needs were growing greater every day.

It is easily explained. The very cause which had gained for the nation the territory, now operated to retard the passage of a bill which would make it a territory in government. The question in the last phase of its existence had gained entrance into the party politics of the country, which at that time were identified with the question of slavery and its extension into new territory. Though every barrier was removed, though Dr. Whitman with thirteen others had been murdered by Indians, though an urgent petition was received from the provisional government pleading for action, though two special messengers were sent to Washington to hasten legislation, though the democratic party was pledged to complete the work begun, though the President sent a special and urgent message to congress, though the territory in question was wholly outside of the belt where slavery might reasonably be expected to exist, yet an obstinate desire to maintain the abstract doctrine, and prevent any reflections upon the unholy institution of slavery, was responsible for this delay.

The President in his message of December, 1847, said: "Besides the want of legal authority for continuing their provisional government, it is wholly inadequate to protect them in their rights of person and property, or to secure to them the enjoyment of the privileges of other citizens to which they are entitled under the Constitution of the United States. They should have the right of suffrage, be represented in a territorial legislature by a delegate in congress, and possess all the rights and privileges which citizens of other portions of the United States have hitherto enjoyed, or may now enjoy."

While the executive department was strongly urging the question, it was receiving attention likewise in congress. After the death of Senator Linn, new advocates of the subject came forward, both in the house and in the senate. Bills and resolutions were before the legislature continually. Memorials came in from bodies of prospective settlers, from city councils,

and even from state legislatures. The provisional government sent petitions in behalf of the colonists, which were well worded statements of the situation. Atchison and Hughes, both of Missouri, introduced bills, in which the boundary line at fifty-four degrees, forty minutes, was asserted. The notice of the termination of the treaty of joint occupancy was given which led to the conference of 1846, and the settlement of the boundary. After the treaty, various bills were introduced for the establishment of a territorial government. For two years obstructions and delays prevented action, and the last session under Polk's administration arrived. There were at this time two bills before congress, both practically framed by Stephen A. Douglas, of Illinois. The interest manifested by Mr. Douglas in this matter again illustrates how much the development of civil government in Oregon is connected with other questions. He seems to have been largely interested in the creation of new territories out of the possessions west of the Mississippi. In a conversation before his death he stated to a friend, who has reported it in a treatise, that this interest was caused by a conviction that there was a settled policy in the east to prevent the westward growth of the nation by settling the Indian tribes, as they were gradually being moved upon the public lands west of the Mississippi. Not only would this prevent a large part of that valley from being settled and becoming a part of the nation, but would completely cut off the line of emigration to Oregon, retarding its growth, or destroying it altogether.^[17]

An unfortunate amendment touching the question of slavery was made to Mr. Douglas' bill, and from that time on the main issue was buried out of sight in the discussion of the slavery question. The representatives from the south would not sanction a denial of their right to take their slaves with them into any of the new territories. Various attempts were made to sidetrack the question by joining its destiny with that of California and New Mexico, and various efforts at compromise were made. As the last day of session came, the anxiety was intense. The bill was before the senate for decision. The subject occupied the greater part of the day, and was continued into the night. Many of the leading men took part in the discussion. It was the policy of the opposition to delay action until the expiration of congress. Mr. Benton called attention to the urgent need for immediate action in somewhat exaggerated language: "A few years ago we were ready to fight all the world to get possession; and now we are just as willing to throw her away as we were then to risk everything for her

possession. She is left without a government, without laws, while at this moment she is engaged in a war with the Indians. There are twelve or fifteen thousand persons settled there who have claims on our protection. She is three thousand miles from the metropolitan seat of government. And yet, although she has set up a provisional government for herself, and that provisional government has taken on itself the enactment of laws, it is left to the will of every individual to determine for himself whether he will obey those laws or not. She has now reached a point beyond which she can exist no longer?"^[18] The opposition spirit is illustrated in the equally exaggerated remarks of John C. Calhoun: "The separation of the north and south is now completed. The south has now a solemn obligation to perform to herself, to the Constitution, to the Union. She is bound to come to a decision not to permit this to go on any further, but to show that, dearly as she prizes the Union, there are questions which she regards as of greater importance. She is bound to fulfill her obligations as she may best understand them. This is not a question of territorial government, but a question involving the Union." It is interesting to hear Mr. Webster's views as summed up in the Congressional Globe: "His objection to slavery was irrespective of lines, and points of latitude. He was opposed to it in every shape, and in every qualification. He was against any compromise of the question." At the close of the day a motion to lay the bill on the table was defeated. The evening was given to discussion, and a motion to adjourn was lost. As the night passed away, the friends of the bill reclined in the ante-rooms ready to vote if an opportunity came, while a few kept guard in the senate chamber. A motion at midnight to adjourn was lost. A senator from Mississippi arose for the purpose of killing time. Until 9 o'clock the following morning, which was Sunday, he gave a rambling history of the world, beginning with the story of the creation. Exhausted, either in strength, material, or obstinacy, he finally sat down. Senator Benton, ever on the alert, immediately moved the passage of the bill. It was carried in a short time, and taken to the President for his signature so that it might become a part of his administration. Thus Oregon became a territory August 14, 1848. It was a very fitting thing that Senator Benton, who had from the first championed the cause, should have the satisfaction of seeing it finished.

The provisions of the bill making Oregon a territory resembled those of other bills of a similar kind in most particulars. The special messengers, J. Quinn Thornton and Stephen L. Meek, had been able to make suggestions

which fitted the bill to the peculiar needs of the new territory. It was notable in being the first bill to set aside two townships of land, instead of one, for the purpose of supporting schools. It recognized the machinery of government already in existence, and endorsed the provisions of the ordinance of 1787, which had already been adopted, in regard to slavery. The transition from the provisional government to the territorial was easily made, and Oregon started out on a new era of existence. The first Governor appointed, Gen. Joseph Lane, referring later in congress to the experience of this time said: "When I arrived there, in the winter of 1848, I found the provisional government working beautifully. Peace and plenty blessed the hills and vales, and harmony and quiet, under the benign influence of that government, reigned supreme throughout her borders. I thought it was almost a pity to disturb the existing relations, to put that government down and another up. Yet they came out to meet me, their first Governor, under the laws of the United States. They told me how proud they were to be under the laws of the United States, and how glad they were to welcome me as holding the commission of the general government."

The period of territorial government was one of growth along all lines. Trouble with the Indians, increase of population, development of industrial life, and the various needs of a growing community, made many drafts upon the new government. It was not long before the largeness of the territory made a division desirable. The people north of the Columbia, separated from those to the south by geographical boundaries, and possessing interests of their own, voted to request the formation of the Washington Territory. This was granted by congress in 1853.

It was not long before forces began to bring about the last step in the development of civil government. There were many things which led to a desire for statehood. The people, in their provisional government, had become accustomed to the complete management of their local affairs, without the supervision of any power above them. While they valued the strength that was derived from connection with the United States, there were many restrictions which troubled them. Then, too, there were other delays incident to ratification of legislation, which was vexatious, particularly to a people who had hitherto enjoyed the quick application of their own laws. The difference between the local and national policy regarding the Indian problem was another influence at work. The people,

annoyed by troubles with the Indians, which were breaking out at intervals, were inclined to a policy that would remove the Indians entirely, while the general government sought to pursue a policy that was more conservative. Nor was the local pride, which the rapid progress of California into statehood had aroused, entirely without its effect. A desire was likewise manifested for the advantage that was thought to lie in the larger representation that a state would have in congress, by the addition of two senators. Nor were ambitious politicians wanting to keep alive this belief and to accept the positions created. There were influences pulling toward the creation of a state government, with its senatorial representation, outside of the community most directly interested. There are always interests to be found in the general drift of political affairs that seek re-enforcement through the admission of new states.

So great, however, was the opposition among the people of the territory, that the calling of a constitutional convention was three times submitted to the people before it was sanctioned. There was opposition from the southern part of the territory where a plan was in contemplation for union with Northern California in the formation of a new state; there was opposition from the Whig party which was growing in power and had a vigorous organ to represent it in the *Oregonian*, and there was a feeling of conservatism which felt that things were not yet ripe for statehood, expressed later so well by Matthew P. Deady, the President of the Convention, in his closing address to that body: "I have not regretted the delay that has occurred, by the country refusing to authorize a convention before this time; but on the contrary, think it has been for the best. As to mere numbers and wealth, we have doubtless sufficient of both to maintain a state government; but a people in my opinion, require age and maturity, as well as wealth and numbers to make them competent to carry on a government successfully. As in the growth of the child and the oak so with a people. Thrown together as we have been, upon this coast, it requires time to knit together in one harmonious whole our diversified elements of population."^[19]

The Constitutional Convention met in August of 1857, at Salem, and was in session for four weeks. It consisted of sixty delegates. It was early agreed to leave the question of slavery to be decided by the people themselves, at the same time that they acted upon the constitution, and thus the greatest danger of obstruction and delay was removed. The discussions, as reported

in the newspapers of the time, indicate considerable party spirit, but, for the most part, they were harmonious and marked by fairness and deliberation. Little difficulty was experienced in framing the main features of the constitution, providing for the organs of government. A general disposition favorable to economy was manifested throughout. That it sometimes went to extremes would be indicated by the dry humor of the suggestion that the chief executive of the state be requested to board around, in the good old schoolmaster fashion.

Many of the most important subjects passed with little or no discussion, but enough questions to excite differences of opinion arose to occupy the time. One of the earliest discussions was upon the boundary of the state. The sentiment was nearly all in favor of a large state, yet a proposal was made to bound it on the east by the Cascade Mountains, which were held to be the natural boundary. This, it was thought, would leave room for the creation of more states and a larger representation in the United States Senate from the west. The speeches in opposition were interesting. One of the delegates in advocating a large state expressed himself in the following words: "I am in favor of extending the area of this state as far east as we can go, go to the Missouri, if possible. I would like to take in Utah, if we could do them any good."^[20] Another said: "I like a large state; I was born and raised in one—the Empire state. Although the people of Rhode Island and Delaware may be very good people, yet I rejoice to know that I was not born in either. I do not like little states; they may have votes in the senate, but they have no political influence. Mr. Seward, black republican as he is, when he speaks in the name of the great state of New York, speaks with an authority and a weight that a Webster could not command speaking from Rhode Island." Another discussion pertained to the introduction of a clause prohibiting the manufacture and sale of intoxicating liquors, a proposal which was finally rejected. Perhaps the longest discussion arose upon a clause rendering the stockholders of a corporation liable for its debts and obligations. It drifted into a consideration of the subject of corporations in general. The opinions expressed ranged all the way from a desire to protect the farmer against "smart gentlemen representing to them glittering schemes" to "that broader question, whether the resources of the country shall be developed or not, whether we shall have the means and facilities for creating a market here, at home, for our surplus products, and whether

the capital that shall come into the country shall receive such protection as will cause it to be productive.”

In most particulars the constitution resembled, both in form and substance, those of other states of the Union. There were some distinguishing features, however. The question of slavery had been decided in the negative by vote of the people, and a clause excluding slavery introduced. There was a feeling, quite common throughout the west, against free negroes, and clauses were introduced to keep them out, by a denial of the right of suffrage, of holding real estate, and the maintenance of any suit in the courts. A somewhat similar policy was pursued toward the Chinese. The assembly was given the right to restrain and regulate immigration, although the conditions of suffrage were made easy for the foreigner. The state was saved the experience of a wildcat medium of exchange, by denial of the right to charter any institution to issue such money. The state was prohibited from being a stockholder in a corporation, and such enterprises could only be established under general laws. The danger of extravagance in the development of the state was prevented by denying the right to incur an indebtedness beyond \$50,000.

This constitution, upon being submitted to the people, was adopted by a majority, and application was made to congress for admission, under its provisions. The constitution, though conservative in the main, provided well for existing needs, and for a safe and steady growth. There was nothing in it to encourage a hasty development or a speculative and harmful condition of industrial life. There is every reason to appreciate the good judgment of those who framed it and did much to mold the character of the commonwealth, as conservative, as sound in its social and industrial policy, and to be depended on for sober and considerate action. Located, as the State of Oregon is, upon the Pacific Coast, where much of the history of the next century must be made, itself the product of an enlarged national life, it must, of necessity, exercise a greater influence in the national policies of the future than it has in those of the past. Some of the provisions of the constitution have, of course, been made of no effect by the amendments to the National Constitution. No sufficient cause has yet arisen to make imperative its own amendment, but the growth of the state may render necessary some changes in the near future.

When the question came before congress the bill was passed without great delay in the senate and submitted to the house. It became the occasion of discussion, but was finally passed and received the President's signature February 14, 1859. The principal objection made to its passage was the denial of a requisite population. No census had been taken since 1855, and approximations had to be made. The delegate from the territory, Joseph Lane, gave it as his opinion that there were from ninety thousand to one hundred thousand people, and his authority was finally accepted. An effort was made by some to join it with the Kansas question, and refuse it admission because that state, with a larger population, had been refused. Some opposed it because it prohibited slavery, and some because it prohibited free negroes; some opposed one specific clause of the constitution and some another, while some opposed it on party grounds and would not vote for a measure introduced by the democratic party. The final sentiment, and the one most generally prevailing, was well expressed by the representative from Massachusetts. "There are provisions in her constitution which, were I to vote upon them, could never receive my sanction. But I do not consider myself as responsible, in the vote which I give for her admission, for each and every item in her constitution. I vote for her admission on general principles. Her constitution is republican in form, and slavery is excluded from her territory forever. I regret with sadness that the people have deemed it expedient to adopt the article they have relative to free negroes, but I must regard it as but temporary and inoperative. I find no state west of New York ready to grant full rights and privileges of citizenship to free blacks; therefore it would be inconsistent to reject Oregon for this clause in her constitution. Oregon, at no remote day must be admitted as a state. If we delay her admission, no man can foresee what intervening circumstances may occur to embarrass and embitter future proceedings."

As we have followed, one after another, the steps in the genesis of political authority and of a commonwealth government in Oregon, we have seen the heroic efforts made by some who have stood out conspicuous as leaders; we have seen the no less heroic efforts of many whose names have received no mention, but whose part in the result has been as great; we have seen the influence of forces which were powerfully working with or against the efforts to achieve the result. We have seen a locality well fitted for the home of man pass out from the condition of a wilderness, through all the

stages of development, to that high state of civilization where every individual enjoys the privilege of citizenship in a great nation, as well as all the liberties of local freedom. And although we have been engaged upon a theme of local history, in its unfolding we have beheld at the same time a gradual enlargement of national life, and a steady progress toward greater things.

JAMES ROOD ROBERTSON.

Chapter Footnotes

- [1.](#) Act of Parliament in appendix to Greenbow's History of Oregon.
- [2.](#) Matthew P. Deady.
- [3.](#) Conversation with Dr. Wm. Geiger, pioneer of 1842.
- [4.](#) Benton's Thirty Years in the Senate.
- [5.](#) Irving's Astoria.
- [6.](#) Annals of Congress and Congressional Debates are authorities used upon discussions in the legislature.
- [7.](#) Hon. Francis Baylies.
- [8.](#) Hon. Francis Baylies.
- [9.](#) The Correspondence and Journals of Capt. Nathaniel J. Wyeth, edited by F. G. Young.
- [10.](#) Thirty Years in the Senate.
- [11.](#) Oregon Archives, by Grover, are the authority used on the provisional government.
- [12.](#) Oregon Archives.
- [13.](#) J. Quinn Thornton.
- [14.](#) Conversation with A. Hinman, pioneer of 1844.
- [15.](#) Messages of the Presidents, by Richardson, is authority for statements of Presidents.
- [16.](#) Blaine's Twenty Years in Congress.
- [17.](#) Brief Treatise on Constitutional and Party Questions by S. A. Douglas. Reported by J. M. Cutts.
- [18.](#) Congressional Globe is authority used for remaining discussions in congress.
- [19.](#) Journal of the Constitutional Convention.
- [20.](#) Reported in the Oregonian, 1857.

THE PROCESS OF SELECTION IN OREGON PIONEER SETTLEMENT.

In the days of the early Oregon pioneers the narrative of Lewis and Clark's explorations to the Pacific Coast had become little more than a tradition to the frontier people of the West. The wild stories of mountain trappers, told by camp fires, and colored by vivid recollections of real privations among mountain defiles—these formed the picture in the popular mind along the frontier of the difficulties to be overcome in a journey across the Rockies. As long as these reiterated stories took their measure of endurance from the wanderings of missionaries and mountain trappers, the problem of their influence might be a simple one; but when the question of taking women and children over the dreary wastes of wide deserts and pathless steepes of mountain cliffs was raised, other considerations were at once added; for how could these trusts be transported over bridgeless and fordless streams? How insured against hunger and thirst, and how kept out of reach of the danger of attack by hostile tribes of Indians?

The object of this brief paper is to outline a conviction of the writer that the difficulties in the way of a migration to Oregon—as these difficulties were seen by the people of the frontier states—formed a selecting test of the kind of people who alone could go to Oregon across the mountains in those days—a real and practical natural selection of a new people for a new community.

Without entering into the hackneyed question of the agency of Doctor Whitman in securing Oregon for the United States, we may say Doctor Whitman was no mythical character. He was a real man; a missionary of the American Board. In 1842 he found the Indians around him so dissatisfied, that he called a synodical meeting of the neighboring missions, and submitted to them the question “Shall we give up the mission of Waiilatpu?” The synod decided in the negative. The doctor then said to his

co-laborers, "Then you must vote me leave of absence, for I must go home to confer with the board on the situation." In fact Doctor Whitman seems to have had a mild kind of monomania on the subject of ox teams drawing plain Missouri wagons from Fort Independence to the Columbia at Wallula. Anyway, his brethren of that synod all knew that he carried that conviction with him to the states. They knew, too, that he wanted an opportunity to publish it along the frontiers to the restless multitude who were asking the question, "Was it safe to attempt to take a family to Oregon in an ox wagon?" Doctor Whitman said he knew this could be done; said he himself would guide a train of wagons to Wallula, on the Columbia, and reach there before the fall storms should hinder their progress.

Let us now turn to the restless people of the frontier who wanted to go to Oregon, and inquire what their mental picture of the great barriers of the journey was. At this time, 1842, these restless people might be found from Eastern Tennessee to Western Missouri. In their view the Rocky Mountain barrier was not a single line of mountains, but a complex system of ranges, like the one that separated Eastern Virginia and the Carolinas from the valley of the Ohio, with whose character they were familiar. They clearly apprehended the difficulties of such mountain travel, without roads or bridges, without shops for repairs, or towns for repurchase of supplies run short. They saw plainly the necessity of starting with wagons loaded for the whole journey, and of getting through before winter. They knew, too, that having passed the Rocky Mountain barrier, a vast desert plain hundreds of miles across extended from the western slope of the Rockies, only to bring them to another mountain barrier—the Cascade Range, which, if not higher, was at least steeper in its approaches. And, inasmuch as this second barrier would be reached late in the season, oxen and horses would be so weak and worn by their long journey as to add fearfully to dangers which they of all people knew how to appreciate. Let it be remembered, too, that all this fearful risk was to be borne by women and children. We have called the routes of travel bridgeless (and often fordless), look as to how much this implies: Suppose our train to have reached what was at their route a fordless stream. The ferry was soon prepared by selecting one of the best of their wagon boxes, caulking its chinks and joints as best they could, and using this as a boat. A rope fastened to it was passed over the river, and this extemporized ferry was ready for its work.

In naming over the principal forms of danger that went to make up the outlook of the road to Oregon in the early forties, one must be named—one more dreaded than all the rest—the continued exposure to Indian attack. For, if after a long toilsome climbing over rocky declivities a pleasanter part of the way is reached, and the weary toilers are led to hope for easier travel, just here, at any turn in the road, the dreadful savage might suddenly make his appearance. Such was the dark picture the journey overland to Oregon presented to the men and women of the frontier, who yet restlessly waited for their own chance to try it. Now, in spite of all these dangers of the way, the wagon trains were organized; were loaded with their precious burden of life and hope; did cross these mountain ranges and the long stretches of desert between them; did reach and people Oregon. There remains the inquiry: What manner of people were they who dared to do this? For surely it was the coming of the women and children of these pioneer wagon trains that won Oregon for the Stars and Stripes.

First of all, then, these pioneers were all frontier people. In 1842 the only people who cared about the question of a migration to Oregon were frontier people of these Western States; people already familiar with the modes and the dangers of travel beyond the safeguards of civilization. And this fact gives us our first test in the classification of our pioneers—they were all frontier people. This limitation was not intended, was not the result of any choice or purpose of those concerned. As an applied test it developed itself from the very nature of the case; for nobody but frontiersmen thought of going, or cared to go.

Another important limitation developed itself in well-defined outlines from the beginning of the movement and lasted throughout the real pioneer period. It was the practical exclusion of capital from the forces that originated its companies, purchased their supplies, or paid for the help they needed on the journey. No people knew better than the border Americans the power of money; but here again its absence was not planned, was not desired. Its absence resulted from the nature of the case; and the forces that moved those trains of farm wagons moved without the stimulus of sustaining capital. The simple fact was that capital saw in the migration of these pioneers no return of any appreciable per centum of the funds to be expended. And thus it came to pass that the wealthy were effectually excluded from the ranks of our Oregon pioneers.

Frontier life has in it ordinarily less of poverty than any other condition of society; a fact, doubtless due to the continual effort necessary there to keep at all abreast of the incessant struggle against the savagery of its surroundings. The long frontier line west of the Mississippi in the early forties was aglow with a restless people pressing westward, and but recently come there. The usual causes of extreme poverty had not settled there; and so it came that few indeed along this border line could be classed as dependent poor. And, perhaps, none too poor to own a team and a good serviceable farm wagon, with means sufficient to provision it with good wholesome food and clothing for a journey to Oregon. But, if such there happened to be, we can easily imagine the dismay it must have caused to have the name of such a man proposed as a member of one of these companies. The fact, doubtless, was that the unfitness of such a proposal prevented its occurrence.

The poor—the dependent poor—were not in the movement to Oregon. These organized wagon companies, however well meaning, however generous they might be as individuals, had no place in their organizations for the dependent poor man. Yet one more of these causes of unfitness for such a journey as the one we have been trying to picture, was that of chronic feeble health. To start on such a difficult and dangerous expedition as this unquestionably was during the proper pioneer family movement, from 1842 to 1852, would have seemed to all concerned too much like suicide of the sick or the chronically feeble.

The expedition to Oregon, as they looked upon it, called for a power of endurance that might be found only in the soundest. So by common consent poor health ruled its possessor from the ranks of the pioneers. One can readily see what must have been the result of this exclusion upon the health condition of Oregon during the early period of its history, if not through more remote chapters of its development.

We have thus forced upon us the conviction that the pioneer migration across the plains to Oregon consisted almost wholly of frontier people. That from their organized trains the rich excluded themselves; the dependent poor were kept aloof, and those subject to chronic sickness or feeble health at once accepted their inevitable exclusion. Now, with these ineligible groups cancelled, we may well ask: Who were left to go to Oregon.

Well, the proposed migration thus shorn of elements that did not fit the heart of the movement, there remained scattered along the frontier several thousands of the very material for pioneering. Men in the prime of life with small families who were themselves accustomed to the management of teams; were familiar with the dangers of desert travel and mountain climbing; were accustomed to Indian alarms, many of them to Indian fighting; and all of them accustomed from childhood to the use of the rifle—these were restlessly waiting the time for movement. Doctor Whitman was informed of this. And it was to take the message of readiness to these that he decided on a winter journey. He may have done other important things. He may have failed to do some things over zealously ascribed to him. This herald work he did. He announced to his synod in Oregon that he regarded this service as the work needing to be done. He did this work, and the Missouri ox-wagons followed. For the restless waiters on destiny along the frontier saw that their time had come.

THOMAS CONDON.

NATHANIEL J. WYETH.

His Adventures in the far West recalled in association with the family home near Boston. "In Historic Mansions and Highways Around Boston," by Samuel Adams Drake, published by Little, Brown & Co., there is a sketch of the family home of Nathaniel J. Wyeth, the early explorer of Oregon. "Emerging from Mount Auburn," the author writes, "we take counsel of the swinging sign pointing to the lane leading to Fresh Pond, which is found to be the natural source of numerous underground streams, which are found wherever the earth is penetrated to any depth between it and Charleston." The writer continues:

Time out of mind the shores of the pond belonged to the Wyeths, and one of this family deserves our notice in passing. Nathaniel J. Wyeth was bred and born near at hand. Of an enterprising and courageous disposition, he conceived the idea of organizing a party with which to cross the continent and engage in trade with the Indian tribes of Oregon. He enlisted one and twenty adventurous spirits, who made him their leader, and with whom he set out from Boston on the first of March, 1832, first encamping his party on one of the harbor islands, in order to inure them to field life. The organizers provided themselves with a novel means of transportation—no other than a number of boats, built at the village smithy, and mounted on wheels. With these boats they expected to pass the rivers they might encounter, while at other times they were to serve as wagons. The idea was not without ingenuity, but was founded on a false estimate of the character of the streams, and of the mountain roads they were sure to meet with.

Wyeth and his followers pursued their route via Baltimore and the railway, which then left them at the base of the Alleghanies, onward to Pittsburg, at which point they took steamboat to Saint Louis, arriving there on the eighteenth of April. Hitherto they had met with only a few disagreeable adventures. They were now to face the real difficulties of their undertaking. They soon discovered that their complicated wagons were

useless, and they were forced to part with them. The warlike tribes, whose hunting-grounds they were to traverse, began to give them uneasiness; and, to crown their misfortunes, they now ascertained how ignorantly they had calculated upon the trade with the savages.

Saint Louis was then the great depot of the Indian traders, who made their annual expeditions across the plains, prepared to fight or barter, as the temper of the Indians might dictate. The old trappers who had made their abode in the mountain regions met the traders at a given rendezvous, receiving powder, lead, tobacco, and a few accessories in exchange for their furs. To one of these parties Wyeth attached himself, and it was well that he did so.

Before reaching the Platte, five of Wyeth's men deserted their companions, either from dissatisfaction with their leader, or because they had just begun to realize the hazard of the enterprise. Nat Wyeth, however, was of that stuff we so expressly name clear grit. There was no flinching about him, the Pacific was his objective, and he determined to arrive at his destination even if he marched alone. William Sublette's party, which Wyeth had joined, encountered the vicissitudes common to a trip across the plains in that day; the only difference being that the New England men now faced these difficulties for the first time, whereas Sublette's party was largely composed of experienced plainsmen. They followed the course of the Platte, seeing great herds of buffalo roaming at large, while they experienced the gnawings of hunger for want of fuel to cook the delicious humps, sirloins and joints, constantly paraded like the fruit of Tantalus before their greedy eyes. They found the streams turbulent and swift; the Black Hills, which the iron horse now so easily ascends, were infested with bears and rattlesnakes. Many of the party fell ill from the effects of drinking the brackish water of the Platte, Dr. Jacob Wyeth, brother of the captain and surgeon of the party, being unluckily of this number.

Sublette, a French creole, and one of the pioneers that have preceded pony-express, telegraph, stagecoach and locomotive, in their onward march, had no fears of the rivalry of the New England men, and readily took them under his protection. Besides, they swelled his numbers by the addition of a score of good rifles, no inconsiderable acquisition when his valuable caravan entered the country of the treacherous Blackfeet, the thieving Crows, or warlike Nez Perces. The united bands arrived at Pierre's Hole,

the trading rendezvous, in July, where they embraced the first opportunity for repose since leaving the white settlements.

At this place there was a further secession from Wyeth's company, by which he was left with only eleven men, the remainder preferring to return home with Sublette. Petty grievances, a somewhat too arrogant demeanor on the part of the leader, and the conviction that the trip would prove a failure, caused these men to desert their companions when only a few hundred miles distant from the mouth of the Columbia. Before a final separation occurred, a severe battle took place between the whites and their Indian allies and the Blackfeet, by which Sublette lost seven of his own men killed and thirteen wounded. None of Wyeth's men were injured in this fight, but a little later one of those who had separated from him was ambushed and killed by Blackfeet.

Wyeth now joined Milton Sublette, the brother of William, under whose guidance he proceeded towards Salmon River. The Bostons, as the Northwest Coast Indians formerly styled all white men, arrived at Vancouver on the twenty-ninth of October, having occupied seven months in a journey which may now be made in as many days. The expedition was a failure, indeed, so far as gain was concerned, and Wyeth's men all left him at the Hudson's Bay Company's Fort. The captain, nothing daunted, and determined to make use of his dearly bought experience, returned to the States the ensuing season. His adventures may be followed by the curious in the pleasant pages of Irving's Captain Bonneville. Arriving at the headwaters of the Missouri, he built what is known as a bull-boat, made of buffalo skins stitched together and stretched over a slight frame, in which, with two or three half-breeds, he consigned himself to the treacherous currents and quicksands of the Big Horn. Down this stream he floated to its confluence with the Yellowstone. At Fort Union he exchanged his leather bark for a dug-out, with which he sailed, floated, or paddled down the turbid Missouri to Camp (now Fort) Leavenworth. He returned to Boston, and, having secured the means, again repaired to St. Louis, where he enlisted a second company of sixty men, with which he once more sought the old Oregon trail.

This was sixty years ago. Since then the Great American Desert, as it was called, has undergone a magical transformation. Cities of twenty thousand inhabitants exist today where Wyeth found only a dreary wilderness; from

the Big Muddy to the Pacific you are scarcely ever out of sight of the smoke of the settler's cabin. In looking at the dangers and trials to which Wyeth found himself opposed, it must be admitted that he exhibited rare traits of courage and perseverance, allied with the natural capacity of a leader. His misfortunes arose through ignorance, and, perhaps to no small extent also, from that vanity which inclines your full-blooded Yankee to believe himself capable of everything, because the word "impossible" is expunged from his vocabulary.

NOTES.

[These notes were intended to be material for the closing pages of the Quarterly, but were misplaced by the printer in the make-up.]

By the death of Elliott Coues last Christmas the history of exploration of the region west of the Mississippi lost a most active and wonderfully proficient worker. After nearly a lifetime spent in prodigious activity in scientific lines he turned his energies to collecting, annotating and editing the original records of explorers and traders of the northwest and southwest. When Doctor Coues first took up the work of editing the narratives of explorers he had attained great eminence as a writer in ornithology. His reputation for thorough scholarship in the whole field of biology was such that he was assigned the subjects of general zoology, comparative anatomy and biology in the preparation of the Century Dictionary. "His scientific writings number about one thousand titles."

He had spent some sixteen years either as a surgeon at different army posts in the west, as far apart as Arizona and North Dakota, or as naturalist connected with different surveys. Thus he brought a unique preparation to the crowning work of his life in history. His annotations, elucidating points of geography, zoology, and ethnology, are copious and minute to a degree that quite bewilders the average reader. The first fruits of his labors in the field of history were the four volumes of his edition of Lewis and Clark in 1893, Zebulon Pike's Expeditions followed in 1895; Henry and Thompson's Journals in 1897; and Fowler's Journal and Larpenteur's Narratives—distinct works—have appeared since. He was engaged on the Diary of Francisco Garces, when he broke down last September, in Santa Fe, at the age of fifty-seven. The issue of the *New York Times* of March 3, speaks of the recent great increase in value of all these works. The first two are particularly scarce, and have commanded treble their original value.

Through Mrs. Frances Fuller Victor it is learned that he had expressed a warm interest in the work of the Oregon Historical Society. He would have been pleased with an honorary membership in the Society. To acknowledge in some fitting way the great service he has done the history of the Northwest would do the Society graceful credit.

A two-volume life of Gen. Isaac Ingalls Stevens by his son, Gen. Hazard Stevens, is announced to appear in May. The history of the Pacific Northwest during the eight eventful years from 1853 to 1861, cannot be understood without a knowledge of the striking personality of General Stevens. As Governor of Washington Territory, in command of the exploration and survey of the northern route for the Pacific Railroad, in authority during the terrible Yakima war, 1855-56, and as author and executor of the summary proceedings for the settlement of the difficulties arising out of that war, Governor Stevens had a most conspicuous part in making that history. Gen. Hazard Stevens has been at work on this life since 1877, and during the last two years has given almost his whole time to it. He says that he found his father's reports in the Indian Department, and others in Washington very full and complete, especially those relating to his Indian councils and treaties. "The proceedings at the Walla Walla council," he remarks, "are especially interesting, particularly the speeches of the Indian chiefs." He believes that the life will have especial historical value in setting the origin of the Indian war of 1855-56, the policy pursued towards the Indians, and the prosecution of the Indian war in a correct light. General Stevens recognizes that the Oregon Historical Society is the rightful heir to the rich collection of historical material from which this part of this work was written.

The Oregon Historical Society, as a perusal of the reports of its activities during the first year of its existence reveals, has entered upon its work under most favorable auspices. The legislature appreciated the importance of the functions undertaken, and the expense attending a successful fulfillment of them. The membership roll indicates a hearty and strong response to the idea that Oregon shall be true to her makers. The Society had at the date of the first annual report of the Secretary seventy-six life members and two hundred and ninety-four annual members.

The primal mission of the Society is to bring together in the most complete measure possible the data for the history of the commonwealth,

and to stimulate the widest and highest use of them. Every member should avail himself of his first opportunity to visit the rooms of the Society in the City Hall at Portland. The Directors believe that he will be assured that there has been commendable zeal in the prosecution of the Society's work. They are concerned, however, that every member shall realize that the trust devolving upon the Society is such that it cannot be adequately or gloriously fulfilled unless each is alert in discovering material, and concerned that it shall reach the collections of the Society. In this line of our commonwealth's interests everything as to serviceability and value depends upon the concentration of the material.

REMINISCENCES OF F. X. MATTHIEU.

By H. S. LYMAN.

Francis Xavier Matthieu, a pioneer of French Prairie, near the old town of Champoeg, of the year 1842, and a participant in the movement for the Oregon provisional government of May, 1843, was a French-Canadian by birth. His native town was Terrebonne, twelve miles from Montreal, and his father and mother were of pure French descent—the father's family being from Normandy, and the mother's from Brittany; and both branches were very early immigrants to Canada. They belonged to the working class, and the parents of F. X. were only in the moderate circumstances of the independent farmer. Owing to this circumstance, young Matthieu was obliged at an early age to begin life on his own account. He went to Montreal when quite young, and engaged as a clerk in a mercantile house. There was, however, still earlier, while he was yet a schoolboy in his native town, a very powerful formative influence that moulded all his ideas, and though somewhat blindly as it first seemed, finally, with wonderful selective affinity, turned his course westward, and made him almost the deciding factor of free government in Oregon.

The date of his birth, 1818, brought his early life and schoolboy days into the very critical time of the patriot movement in Canada. With that disregard of political obligations for which the British government was formerly noted, such as had caused the rupture with her greatest American colonies, the royal authority had failed to keep the promises made to the Canadian provinces; and, now restive under a rule that seemed both tyrannous and faithless, the leaders of those Canadians were demanding their covenanted rights as they understood them. Louis J. Papineau, an orator of the character of Laurier of the present day, was leading the movement. He had drawn up the famous memorial, or bill of grievances, to

the British crown. Though not a successful military leader, and, indeed, discountenancing the use of force, he was a thrilling orator, and had fired the heart of the French-Canadians with the hope of equal rights; and created the determination to acquire these, if not by agitation, then by revolution.

It happened that in the town of Terrebonne, where the little F. X. Matthieu was living, there was a highly educated civil officer, a notary public—the office of notary then being a profession that required special legal, and classical education. The name of this notary was Velade; and, besides his official duties, he was schoolmaster, receiving a small stipend from the government, and nominal fees from his pupils. Velade was a student of government, and a great admirer of the United States. American liberty and law as developed in this country, he taught in his school almost to the entire neglect of the Canadian system. This he not only taught, but actually instituted. Every term his school held an election after the American plan. Some of the boys also regularly celebrated the Fourth of July, carrying American flags. This was in connection with some young men from the United States who had come to Terrebonne, and started a nail factory. With this extreme Americanism, however, the townspeople were not altogether pleased, and sometimes broke up their demonstrations.

While still a mere boy, Matthieu went to Montreal, where he was engaged in clerking, and there acquired a certain impress and manner that distinguishes him even yet from the farmer. Being already imbued with ideas of free government, it was easy for him to find and join the Sons of Liberty—a secret organization auxiliary to the party called “Democrats,” who opposed the “Bureaucrats.”

The Sons of Liberty, or patriots, carried their movement to the point of armed resistance. They drilled regularly in secret, using sticks for guns; and at night met in secluded places to make cartridges and mould bullets. Mr. Matthieu has preserved to this day his old bullet mould, used at that time, which he has now presented to the Oregon Historical Society. He was himself a very useful member of the Sons of Liberty, since, being a store clerk, he could procure lead and powder more easily than some others. One of the services of this company was to guard the house of Papineau, whose appeals he heard in public, and whose boldness was bringing on the threatened crisis.

As is well known, however, the movement collapsed. Before a blow was struck, many of the Sons of Liberty were placed under arrest and executed. Mr. Matthieu recalls the hanging of sixteen patriots in one market place, tied in pairs, back to back. Though then a youth of not twenty years old, he was himself in danger of the same fate and sought safety at Terrebonne. While here, almost in hiding, he was approached by a certain Doctor Frasier, a Scotchman, holding some government position, and who, as it happened, was an uncle of Dr. John McLoughlin, then Hudson's Bay chief factor at Fort Vancouver, Oregon Territory. Matthieu was asked why he did not leave Canada.

"I have no pass," he replied.

"I will give you one," said the old doctor; and immediately provided the necessary paper.

With this passport, Matthieu at once started for the American border. He would become citizen of the United States. At the line, however, where it was necessary to present his pass, the officer looked at him sharply; "You do not correspond with the description;" he said, "this calls for black eyes, yours are blue"—this inadvertence probably being due to the fact that his eyes were of that changeable color that turns dark under excitement.

"Can't help the description," replied the young refugee, "that is not my fault."

The officer then eyed his red and black diamond squared plaid, which was the patriot uniform, and which Matthieu had not thought of as unsafe while he had his passport. But instead of detaining him, the officer said, "Well, get along with you; the sooner the country is rid of you fellows, the better"—probably little dreaming that the blue-eyed patriot was to turn up a few years later in Oregon to confront the British authority and help that important section of North America over to liberty as defined in the American Constitution.

Coming to Albany, New York, (1838), he soon found employment as clerk in a store. To him, his patron was honorable; but not altogether so to his creditors, as he left the city suddenly and secretly. Matthieu was entrusted with the care of his family, and was instructed to bring them to the new scene of operations, being Milwaukee, Wisconsin. This, in course of

time, led the young man to that then far western land (May, 1839). From Milwaukee he went to St. Louis, being attracted toward that old French city (August, 1839). There he found service very soon with the American Fur Company—then officered almost exclusively by Frenchmen. His first outing was to Fort Pierre (October, 1839), on the Missouri River, among the Sioux and Dakotas—the Sioux Indians being the finest wild men that he has ever seen, whom he describes as “a great nation, fine, noble fellows.” During this period he encountered many hardships, and also much to interest a light-hearted Gallic youth. He remembers one expedition on which provisions became reduced, the daily allowance being two biscuits to the man and two ounces of dried Buffalo beef to two comrades. This lean fare was eked out, as they marched, by eating the frosted rosebuds of the Missouri meadows. As an incident of a trader’s life among the Sioux, he recalls with much *gusto* the solemn feasts of the chiefs, which it would have been the height of impropriety not to attend, and which must be observed with all *punctillio*, or spoil all the bargaining. These were dog feasts, and consisted principally in eating a plateful of soup of tender dog meat boiled to a paste, into which red buffalo berries were sprinkled. To leave any of this delicacy uneaten would be a breach of etiquette too serious to allow; and the higher the trader was held in estimation, the more liberal the share placed upon his plate. Not only to a refined palate was the dog paste rather objectionable, but it often included much of the hair of the dog as well as other portions. The sharp French trader, however, avoided the difficulty. He hired an Indian chief of unquestioned appetite to clean up his plate. Thus the feast had been eaten; and etiquette was fully satisfied.

A limited amount of alcohol was also used by the traders in connection with driving bargains, and Mr. Matthieu recalls one instance in which one gallon of the article judiciously diluted procured ten buffalo robes, worth \$10 each—besides other trumpery. However, the better class of the traders seldom indulged the Indians beyond moderation, or only at long intervals. So great was their fondness for the stuff that even the smell of liquor often seemed to set them wild.

After a year’s service in the country of the Sioux, the return to Saint Louis was made, and at that point he outfitted as a free trapper, going out on to the Arkansas to Bent’s Fort (1840). George Bent, the notable trapper-captain, whom he met there, he describes as “a little bit of a man, but sharp

as lightning.” On this jaunt he also met Kit Carson, who is almost as well known in the annals of the frontier as Daniel Boone of Kentucky. Carson he describes as “a terror”—not as a desperado, however, but as a hunter. He was an unerring shot, and dropped many a buffalo. He was stocky and nervy in build, and had something of the Southwestern bluster of manner, yet not so offensively so as many others.

Mr. Matthieu recalls serious hardships on this expedition, passing one stretch of five days without food. But such experiences were little thought of, the trapper always relying upon his rifle without fear. In those days the Indians were very friendly.

Returning eastward the next season, he spent the winter and spring trapping in the Black Hills (1841). However, it seems that this life of a trapper, nomadic and free, and dependent only upon the unlimited bounty of nature, and the friendly offices of the generally tractable Indians, although amusing in many ways to a light-hearted Frenchman, did not wholly satisfy young Matthieu. The desire for settled society, and progressive individual life and home frequently took possession of him; and the opportunity to gratify this was apparently fortuitously afforded at Fort Laramie, early in the summer of 1842.

With his party of trappers he found there the Oregon immigrants of that season. This was the first regular immigration to Oregon across the plains, and aside from the ladies of the mission parties that had crossed in 1836-38, it was the first appearance of white women in the Rocky Mountains.

This was the party of Captain Hastings, in which was Dr. Elijah White, who had first come to Oregon with the large mission party on the bark *Lausanne*, in 1839-40; but had returned east, and was now coming to Oregon again, crossing the plains, holding the appointment to the position of sub-Indian agent for Oregon, and was accompanied by a party of over one hundred immigrants. Doctor White is recalled by Mr. Matthieu as “a sleek looking gentleman,” and “a quick talker.”

A well-known member of the party was Amos L. Lovejoy, described as very light sandy-complexioned, and “more quick tempered than any man I ever knew;” Captain Hastings was of heavy build and swarthy complexion. The pioneer, Medorem Crawford, then in his young prime, was also in the company. Sydney Moss, now living as a nonagenarian at Oregon City;

Thomas Sladden and——Robb were also quickly made acquaintances. Among the women of the party Mr. Matthieu especially recalls an elderly widow, Mrs. Brown, and her daughter, who were said to have been held, previous to this time, as captives among the Comanches. There were a number of families in the train, among them being that of Mr. Smith.

The pilot of the company was Fitzpatrick, the famous guide of Wyeth's party, whom Matthieu describes as tall and spare with abundant gray hair; an Irishman of good common education, and even gentlemanly bearing; perfectly at home anywhere on the boundless prairies, or within the mountain ranges. Unlike the most of his race, however, he was very taciturn.

While this company was waiting at Laramie, provisioning, Matthieu and his comrades quickly decided to go along with them to Oregon. They had their rifles and their horses; what more was required? The very first night, however, they discovered that more was needed. They went supperless, game having failed during the day; and they could not but look on with a little envy and self-commiseration at the various campfires where the immigrants were despatching fried bacon and mountain biscuit and drinking coffee. Mr. Matthieu says, however, that the immigrants could not be blamed or called inhospitable for neglecting to entertain them, as they knew as yet nothing of the trappers who had joined their caravan, and every head of a family felt obliged to guard his little store of provisions, scant at the best.

The incidents of the journey are vividly recalled by Mr. Matthieu, though now after a lapse of fifty-eight years. These should be mentioned here, some being serious and some being laughable, whether recorded elsewhere or not, as they afford light upon the individuality of this important member of the group of Oregon pioneers, of the era of the provisional government.

One of the first serious affairs after leaving Laramie occurred at Independence Rock. This was the incident of the capture of Hastings and Lovejoy by the Sioux Indians. At this point, a noted rock, or high ledge, with a perpendicular front, about the space of a mile (F. X. M.) from the Sweetwater River, the immigrant train was delayed in order to bury a man, one of a company of Germans, who, in drawing his gun from a wagon

accidentally caused the discharge of the piece with the result that he was fatally shot in the groin.

Taking advantage of this delay, Matthieu and his comrades went buffalo hunting. From the actions of the buffaloes that were at length discovered, he was suspicious that there were Indians in the neighborhood. The buffalo herds were constantly in motion, as was the case when the Indians were stalking them. This, however, caused him no uneasiness, and it was not until two o'clock next morning that he returned to the train.

The journey was resumed about daybreak, but sometime in the forenoon it began to be passed around that Lovejoy and Captain Hastings were missing; and this caused anxiety. Matthieu suspected Indians and scanned the plains, now ablaze to the distant horizon in the summer sunshine. At length he caught far in the distance, a distinct glance of light. This was thrown, as he surmised, from one of the little zinc-framed looking-glasses that the Indian braves frequently wore attached around their necks. Waiting for no further sign, he hastened to the train, telling the immigrants to halt and get ready, as the Indians would soon be upon them. To them this was rather mystifying, as the young Frenchman took no trouble to explain how he knew this. But upon his advice the wagons were halted, and everything was placed in readiness to receive the Indians, who might be hostile. In the course of a few hours a great band of Sioux appeared in sight, developing out of the prairie, and galloping in wild fashion upon their ponies—or in large part running on foot. They numbered about five hundred and were in full war dress and paint. Lovejoy and Hastings were among them, being held as captives and looking very much crestfallen. They had delayed, as it seems, in boyish spirit, to inscribe their names among others on the face of Independence Rock; and having just completed their task, had turned to go only to find themselves in the embrace of some very large Indians.

Matthieu, however, who knew personally some of the chiefs, soon saw that they were good natured, as they now moved around the train, and were only wishing to drive a good bargain to let their captives go. They were a war party and wanted ammunition. When this was made known, the men of the train exclaimed "What! shall we give them ammunition to shoot us with?" Matthieu, however, advised giving it. "They have enough ammunition already," he said, "to shoot us. They do not wish to fight us, but only desire supplies for fighting other Indians." Accordingly, the

ammunition was given them, along with other things, and the captives were released. This, however, was not the last of Indians. The next day a band, or rather a host, of about five or six thousand (F. X. M.) of the Blackfoot Sioux, under a great war chief, appeared. By this immense multitude, the train was compelled to halt, and to be inspected by band after band of the curious savages. The Indians being in such overwhelming force, were very free in their ways. They were especially curious to look at the women of the train. Mr. Matthieu relates the following amusing incident: "The family of Mr. Smith was especially annoyed by the curious braves, who came continually to their tent, and pulling the flaps apart, gazed in silent admiration upon his wife and daughters, or spoke to one another in their own language." By this behavior Mr. Smith, who was of a very irascible temper, was so much annoyed that he came at length to Matthieu, asking him to send them off, as he could do nothing with them. When Matthieu arrived and discovered what it was the Indians wanted, and the thoroughly irate Mr. Smith desired to know, the Frenchman said: "You must be very quiet; you must make no commotion." Mr. Smith agreed. "I am almost afraid to tell you," continued Matthieu, "you will not like it." Mr. Smith insisted. "They wish to buy one of your daughters to present to their great chief," said Mr. Matthieu. At this Mr. Smith sprang to his feet in great excitement, ready to drive the intruders away by force. "Softly, softly," said Matthieu. "You will have the whole band down upon us." Then to the Indians he explained how their white brother regretted his inability to meet their wishes; but according to the customs of his people, it was impossible to sell her. When satisfied entirely with this information, the braves retired. However, the fondness of the Indians to see and even possess the white women, was a real source of danger, with which the immigrant parties had to reckon. It was not simply an annoyance. It was apprehended by some that American families could never cross the plains safely. The Indians, it was said, would seize their women at all hazards. That they did not do so, but respected the white man's customs, even when, as in this case, they were in greatly superior numbers, shows they had a certain native morality, often not found among the whites.

This great band of Indians also could hardly be made to believe that the immigrant train had no liquors, and begged insistently for the firewater. Fitzpatrick, the pilot, both with this band and that at Independence Rock, refused to be made known, not wishing to implicate himself as a leader of

white people through their country; and remarked that all the prairie was home to him, and he could drop off anywhere. Matthieu, therefore, having learned the custom of the Sioux, and knowing some of them personally, was able to help the immigrants, and to greatly reduce the liability of trouble. "I actually believe," he says, "that they might not have got through without me." These Sioux, being of the Blackfoot division of the nation, were at this juncture on a great expedition to cross the Rocky Mountains and attack the Snake Indians.

At Fort Hall, the exact date of reaching which is not remembered by Mr. Matthieu, the immigrants delayed, some for a shorter, others a longer time. The object was to change from their wagons to pack saddles. Mr. Matthieu does not recollect that the Hudson's Bay commandant there offered to purchase any wagons, and thinks this improbable. "The Hudson's Bay Company had no use for any wagons," he observes.

The commandant, Grant, is well remembered as very large and fine looking "as big a man as Dr. John McLoughlin"—which is as grand a comparison as could be made by a McLoughlin admirer. Grant assured the immigrants that it was impossible for wagons to cross the Blue Mountains into Oregon. This, Mr. Matthieu believes, was said because he thought it true, and he was simply representing what was generally understood as the fact. Mr. Matthieu remarks, however, "we all know very well that the Hudson's Bay Company was not favorable to immigration to Oregon;" and, though only a young man at the time, he understood that the British expected to hold the Columbia River as their boundary line. As to bringing the wagons on to the Columbia River, he says that this could have been done, as wood and water and the grass were in most places abundant, and though in some places the trail was very difficult, it was not impossible to American teamsters.

He and his comrades remained about eight days at Fort Hall, and then came on with the Hudson's Bay express by the horse trail, crossing the Blue Mountains, and descending upon the valley of the Umatilla, and then going by Whitman's farm at Waiilatpu to old Fort Walla Walla. At Waiilatpu he remained fifteen days waiting for the other immigrants to come in; as the trip from Fort Hall to Whitman's was made in small parties, or even by families, as they were able, the later ones following the tracks of the earlier.

There was here no danger of Indians, and the semi-military organization with which they started was entirely abandoned.

With Doctor Whitman and his place, Mr. Matthieu was very favorably impressed. The farm was neat and well cultivated, having a large garden, a field of grain and a small grist mill. Doctor Whitman himself he describes as “a very nice man,” of unbounded hospitality. “His garden and grist mill he threw open” to their use, and for what they had need of “he would not take a cent.” In person he recalls Whitman as not very tall, rather slender in build, and of strongly Yankee style. His hair was then dark. Though very favorably impressed, however, with Whitman, the Yankee missionary bore, in Matthieu’s estimation, no comparison with Doctor McLoughlin, who was his beau ideal of the natural-born leader of men.

In this connection Mr. Matthieu states that he had the following incident directly from some employees of the Hudson’s Bay Company at Vancouver, which illustrates Doctor McLoughlin’s disposition toward Whitman. In 1841 the Cayuse Indians formed the intention of killing Doctor Whitman. But they feared the punishment that Doctor McLoughlin would visit upon them, if he disapproved the act. They devised the plan, therefore, of discovering his feeling, as if by accident. A number of the leaders were sent to Fort Vancouver, and there stationing themselves by the bank of the river, they began to talk to one another of destroying Whitman. Doctor McLoughlin was passing and they were purposely overheard by him. Instantly confronting the Cayuses the old Doctor raised his great cane and cried out in a terrific voice, “Who says you shall kill Whitman?” and threatened condign punishment if such a massacre should take place. The Indians scattered and immediately gave up their evil plan.

Before leaving Mr. Matthieu’s account of his experiences on the plains, perhaps the following story may be told as throwing a side light upon the character and ways of some of the people who crossed. It is in regard to an Irishman called Pat, who was with the party but had no outfit and no money, and was little better than a camp follower. He obtained his day’s provisions by going from camp to camp, or mess to mess, asking for anything that might be put into his pot, which he then boiled over the fire making a sort of soup. Once while he was thus cooking he had the misfortune to drop his pipe into the savory mess, which turned it so much against his stomach that he would not eat it. “Give it to B.,” suggested a

bystander, "he will eat anything." B. was another camp-follower, less-liked than Pat. B. enjoyed his meal, but afterwards regretted his precipitancy. Pat always endeavored to return the courtesies of his patrons by doing little favors around the camps, especially in helping the women about their wood and fires, and became rather a favorite. Reaching Oregon, and finally going to California, he prospered and became a wealthy man.

The trip over the Cascade Mountains was the most difficult of any part of the journey, and involved the most suffering. The route was by the old Indian trail at the base of Mount Hood, on the north side. A snow-storm was encountered here, and by this fourteen of the horses were stampeded and took the back trail for The Dalles, where there was an abundance of grass. Matthieu, however, managed to keep himself comfortable during the storm by kindling an immense fire in the timber, and retained his horses by tying them. On this part of the trip he was accompanied by Hugh Burns, a well-known Irishman, who made himself useful as cook.

At Oregon City, which he reached about the twenty-fifth of September (F. X. M.) the first man that he met was Father Waller, the well-known member of the Methodist Society. By this kindly gentleman, Matthieu was at once and very pressingly invited home to supper. "He wanted to hear all about my journey." Matthieu, however, felt rather delicate about accepting his hospitality. After his hard journey over the last range of mountains he felt outrageously hungry; but, for this very reason, was timid about partaking a "company dinner," so he began apologizing: "I am looking rough and very dirty," he said, "Had you not better excuse me?"

"No, no," said Father Waller, "you must come."

The neat house, the supper table with its snowy cloth and shining dishes, and the care of the lady, Mrs. Waller, to have a nice repast, greatly impressed the hungry immigrant. But particularly was his appetite whetted, if that were possible, by the sight and smell of potatoes—an article of food he had not seen for months. When seated at the table he was hardly able to restrain himself; he was taken not a little aback, however, when, instead of proceeding to the meal at once, the good missionary began by asking a blessing, which he extended into quite lengthy devotions. "It was the longest prayer I ever heard," says Mr. Matthieu.

Learning at Oregon City that there were French Canadians on the prairie fifteen miles up the Willamette, he proceeded to Champoege. Arriving there he found that the settlers in that region numbered nearly three hundred all told. Stopping off at the old landing, he found near this point, about a mile and a half up the river, living upon the river bank, Etienne Lucier, and remained with him during the winter. French Prairie is the borderland between the originally heavily timbered country of the lower Willamette and the more open lands of Marion County and the big prairies of the upper valley. Matthieu found the country of the French settlers even more beautifully diversified than at the present, the practice of the Indians, then but recently discontinued, of burning the prairies over, having brought the whole country for miles together to the condition of a park. Stately groves of fir and oak, or belts of deciduous timber along the water courses, broke the monotony of the grassy levels, while from almost any point of view the panorama of distant mountain scenery was uninterrupted. The Butte, as it was called, which escarped upon the Willamette just below the landing, and from which Butteville takes its name, formed a slightly highland and became a well-known landmark to the voyager of the early day. The name Champoege, says Mr. Matthieu, is simply a corruption of the French term, *Champment Sable*—the camp of the sands.

With this Willamette country, however, Matthieu was not at first thoroughly pleased. The deep moss that gathered on the trees and buildings, and the general mildness and moisture of the winter weather, suggested disease, such as fever and ague. He anticipated a hot, sickly summer—which, however, he afterwards found was not the characteristic of Oregon.

Life in this region was entirely Arcadian. The Hudson's Bay servants had been encouraged to settle upon the rich prairie lands and raise wheat. Doctor McLoughlin, a most shrewd business man, foresaw (F. X. M.) that the Willamette and Columbia valleys would ultimately cease to be fur-bearing country, and sought privileges to the north. His agreements with the Russians of New Archangel, allowing him to trade with the Indians of Alaska, provided, also, that he should supply that post with fifteen thousand bushels of wheat per year. To meet this requirement, the old Hudson's Bay servants who had served out their time, and by their articles of agreement were to be returned to their native land, were retained as employees of the company, and they were provided, also, with an outfit to begin farming.

This consisted of a two-wheeled cart, oxen, plows, a cow, and necessary household furniture, which was to be paid for in wheat—the ordinary currency of the country. The cattle were to be returned; the increase kept. A double outfit was allowed to those who would settle north of the Columbia River. This, as Mr. Matthieu understands, was for political reasons; the British wishing to secure that section by actual settlement and occupation. The convenience, the beauty, and the fertility of the Willamette Valley, however, outweighed in the minds of the farmers the greater liberality of the offer on the north, and most of the Hudson's Bay people came to French Prairie.

Lucier, Matthieu found, was one of the oldest of the Oregonians, having preceded him by about thirty years. He was one of the old trappers that came with Hunt's party, of the Astor expedition. In person, this now old man was short and stocky, and of a dark complexion. He was about sixty, and was living with his second wife. The first family of three children were then grown. His second family consisted of two boys, both of whom are now living on French Prairie, one having a family of several children. Among the subjects of conversation with Lucier were the laws and customs of the United States. The old Hudson's Bay trapper was quite suspicious, and had been told that our government imposed very heavy duties—such as placing a tax upon windows. Matthieu, however, was able to tell him that this was entirely a mistake. The laws of the United States were just and liberal, and under them all men were equal; there was no tyranny. Lucier, who was a very saving and industrious man, and at the end of his service with the company had to his credit the respectable sum of £400, was finally well satisfied with these representations. All the settlers of the Prairie he found to be hospitable in the extreme; they were willing to share with the stranger anything they had. The most of them had native wives, or at least of mixed blood; a number of whom were from Clatsop or Chinook. They were an industrious people and entirely honest. The incident is related that by some mistake as to ownership three sacks of potatoes were once left on the river bank at the portage at Oregon City. There they remained three months, no one disturbing them. The following story also is told of McLoughlin and his wheat buyer: It was the custom of the agent who bought wheat to strike the measure—the wheat not being very well cleaned requiring to be settled in order to give full weight. Seeing him give the measure a number of slow, gentle taps, McLoughlin exclaimed, "Tut, tut,"

and gave it one heavy blow; but to his chagrin, and the vast enjoyment of the bystanders, the doctor's heavy stroke instead of *settling* the grain only shook it up, and he instantly admitted that the buyer's way was the best, and with that the farmers were all well pleased, because thereby they *sold the best weight*—which illustrates not only their simplicity, but their desire to act on the square with the great chief factor.

Names of French-Canadians on French Prairie when Mr. Matthieu first went there, and who all, as he remembers, took part in the provisional government meeting—they are collected from his ledger of the business carried on by him with George Le Roque, at Butteville, beginning in 1850:

XAVIER LADEROUTE
ANTOINE BONANFANT
ANDRE LA CHAPPELL
PIERRE PAPIN
LOUIS B. VANDALLE
JEAN B. DU CHARME
FABIEN MALOIN
LUC PAGNON
ETIENNE GREGOIRE
AMABLE ARCOUETTE
PIERRE DE LORD
LOUIS A. VANDALLE
JOHN SANDERS
PIERRE PARISEAU
CHARLES RONDEAU
DAVID DONPIERRE
ANDRE DU BOIS
PIERRE DEPOT
MOYSE LOR
PIERRE LE COURSE
JOSEPH BERNABE
BAPTISTE DEGUIRE
ADOLPHE CHAMBERLAIN
JEAN LINGRAS
ALEXIS AUBICHON
JEAN SERVANS
MICHELLE LAFERTE
JEAN B. DALCOURSE
LOUIS OSANT
JEAN B. AUBICHON
ANTOINE FELICE
MICHAEL LAFROMBOISE
JOSEPH GERVAIS
JEAN B. PANPIN
OLIVIER BRISCBOIS
THOMAS ROA
LOUIS BOIVERS
ANDRE LANGTAIN
ETIENNE LUCIER
ALEXIS LAPRATTE
PIERRE BELAQUE.

The following were Frenchmen who came to Oregon in the spring of 1842, except Matthieu, who came in the fall. They were at the meeting at Champoege. This list has, perhaps, never been published:

GEDEREAU SENCALLE
THOMAS MOISON
PIERRE GANTHIER
AUGUSTIN REMON
JOSEPH MATTE
FRANCIS BERNIER
F. X. MATTHIEU.

During the first months of the year 1843, the question of organizing an independent or provisional government, until the United States should extend its authority over Oregon, was much discussed. Debates were held at Oregon City, and the project was the matter of ordinary conversations at Salem and Tualatin Plains. The leaders of the movement, as is well known, saw the necessity of the whole community participating, and devised a plan that would interest all. The French Canadians could not be interested in the general question of a new government; being quite contented as they were, and having unlimited faith in McLoughlin, with whom they did all their business, and from whom they obtained all the counsel and protection they felt needed.

“The idea of organizing a provisional government was then,” says Mr. Matthieu, “to give the United States a reason for taking possession of Oregon.”

The device of the “Wolf Meetings,” however, for providing protection against the wild animals, brought them out and the greater question of forming a government was gradually from this brought to a focus. With this preliminary work, however, Matthieu had nothing to do, and his sentiments were not known to the Americans, or even to the Canadians, except Lucier. He was not at the meetings of February and March. He attended the meeting at Champoege. This was held, according to his recollection, in a Hudson’s Bay building, just over the bluff, at the landing; the embankment of the river here being high and steep. The meeting, however, was very informal, being called to order in the house, but the final vote being taken out of doors.

The details of this important meeting need not be here entered into, except so far as concerns the recollection of Mr. Matthieu. The ability of the common people to organize and maintain a sufficient government, in a remote corner of the world, in the midst of numerous and even in some

cases of powerful and cunning bands of Indians; and in opposition to the interests and business policy of a great corporation—was to be tested. The character and calibre of the men who constituted the “people” is a matter of the highest and most lasting interest. What items Mr. Matthieu recollects of them are worthy of the most careful preservation. He remembers W. H. Gray as one of the most active and strenuous of the Americans at the meeting. “Gray took part,” he says. “He wanted to organize the worst way—he would not give up to any other notion.” G. W. Le Breton, whom he describes as very popular, both with the French and with the Americans, and who acted as secretary, was not less alert. He remembers Le Breton as a young man, short in person, but very active. “He never stood still a minute.” He recollects Rev. J. S. Griffin of Tualatin Plains as present, but not as taking a very active part. Robert Shortess, with his tall, slim figure and strongly Roman profile, was also among the number. Sydney Smith, from Chehalem, was there too. Mr. Matthieu recalls of Smith that he once hired him to assist in filling out a bill of logs, contracted to be delivered at Oregon City. To Matthieu’s dismay—he was inexperienced as a lumberman—the first cut, which was from a white fir, that he had rolled into the river, sank out of sight in the water. Smith used a strong expression implying lack of sense on the part of the person to whom it was applied, and then exclaimed—“I will show you.” Then he bored a hole in a log to be rafted and inserted a large cedar plug, or chunk, which just floated the white fir. Thomas Hubbard was also at the meeting. Others whom he recalls were Amos Cook and Francis Fletcher of the Yamhill Fords, near La Fayette; and George Gay, who was formerly an English sailor, but took leave of his ship at Monterey, California, and came to Oregon in the well known party with Doctor Bailey, and became a large landholder near Dayton, building the first brick house in the valley, and becoming famous for his hospitality to travelers. Others were G. W. Ebbert, Wilkins, Doctor Newell and Joseph L. Meek, of the Tualatin Plains, and Messrs. Babcock, Hines, Doctor Wilson, Alanson Beers, and J. L. Parrish of the Methodist Society.

Matthieu understood that there were three parties in reference to organizing a government. These were the strongly American for it, led by Gray and others, and the Canadian settlers who opposed, or at least did not favor it; and Dr. McLoughlin and his near friends, who really favored an independent government and expected to become citizens of it, but who thought the movement at that time premature. Mr. Matthieu does not recall

that Bishop Blanchet was present at the meeting. A memorial had been prepared by the Bishop, on the part of the Canadians, to show that organization was unnecessary and inadvisable. At the critical juncture, however, after there had been some discussion and the meeting was becoming confused, and, indeed, was in danger of breaking up without action, he remembers well how old Joe Meek strode forth, and by the simple power of voice and example gained control after parliamentary tactics had failed. He cried out, as he would to a company of militiamen: "All in favor of organization, come to the right." One hundred and two men were present. Fifty of these quickly went over to the right, in favor of independence. The other fifty-two, all Canadians, remained as they were, or withdrew in the other direction.

Now came out Matthieu's republican training, which he had received in his schoolboy days, under Velade, at Terrebonne. His "mind was made up," he says, "ever since I left Canada. I knew what it was to live and die a slave under British rule." And he was still carrying the picture of Papineau, the liberator.

Now that a time for action had come, he was not wanting. He said, therefore, to the Canadians that he was going with the Americans. He knew what he was doing, and was fully decided which was the right side.

Old Lucier, the trapper of 1811, followed him, and now the vote stood fifty-two for, and fifty against organization. Then went up the shout, led by Joe Meek and his mountain men.

The Canadians, though defeated, were entirely satisfied with the result, and had not favored the movement principally because they did not understand it, and, like Lucier, had obtained incorrect ideas. But when the vote prevailed, they acquiesced cheerfully, and became among the best citizens of the little republic—the smallest, probably, since the days of the Pilgrim fathers, who organized their government in the cabin of the Mayflower.

After organization was effected, and a body of laws was framed, Matthieu was called upon to take part in affairs, and was elected justice of the peace for Champoege County, an office which he says he filled to "the satisfaction of every body." He settled disputes by inviting the complaining

parties to sit down with him to a good dinner, and after an hour's cheer and pleasant chat, he sent them away well contented with his findings.

He had some trouble with distillers, who sometimes set up little stills in out of the way places, and made liquor to intoxicate the Indians. He recalls one case in which he and Doctor Wilson, the judge, traced a distiller out into the woods, back of French Prairie, at DePot's, and found him over a teakettle, which he used as his still, manufacturing what was called "blue ruin"—a liquor made out of Sandwich Island molasses, and was an article so destructive as to almost relieve the authorities of the necessity of estopping the manufacture—the juice being the executioner of its producer.

Of all the characters of the early day, McLoughlin stands out foremost, and overtops all others, in Mr. Matthieu's recollection. The old chief factor had some of the elements of greatness: "He was the finest man I ever knew," says Mr. Matthieu, "and there will never be another like him. He did what no other man would do." With Doctor McLoughlin, Doctor Whitman, whom he greatly respected, he says, "bore no comparison." McLoughlin had the immense physique, the great voice, and the commanding manner, and also the positive and decisive mind that carried all before him.

Many are the incidents that Mr. Matthieu relates illustrating his qualities. Once, he says, an Indian was brought to him charged with committing a gross offense. "Is he guilty?" asked the doctor. "Yes," they replied, and presented the proof. "Tie him to that cannon," he replied, pointing to one of the two pieces of artillery that commanded the entrance to the fort. When this was done, he said, "Give him fifteen lashes." Soon after a white man was brought, charged with the same offense. Doctor McLoughlin made the same inquiries, and finding him guilty administered the same punishment. This illustrates why his authority was so absolute among the Indians. His administration exactly filled their conception of justice.

The services of McLoughlin to the immigrants of the year '42, and later, until he resigned his position as chief factor, are fully vouched for by Mr. Matthieu. The doctor advanced everything needed, and furnished the use of bateaux to any in distress. The concluding portion of the immigrants' journey, that from The Dalles to Oregon City, was often virtually provided for by McLoughlin. For all these advances, he was held to the last penny by his company, and as Mr. Matthieu learned, he was obliged to render every

cent not paid by the immigrants—a sum so large as to very nearly bankrupt the man.

Upon the return of Mr. Matthieu, in 1858, for a visit to his home in Canada, he took the pains to visit some of Doctor McLoughlin's relatives at their place of business in Quebec, whom he found to be men of much the same magnificent physical mould as the chief factor. He inquired of them as particularly as he dared as to Doctor McLoughlin's fortune, venturing to remark that he supposed he was very rich. "He was wealthy at one time," was the reply, "but his company required the payment of large sums that he advanced on credit, and that left him with little."

Mr. Matthieu understands that besides his salary of £2,500 per year, he held two shares in the stock of the company, the largest allowed to one individual outside the chartered corporation. His business also included, besides the fur trade of Oregon, extensive operations in British Columbia and Alaska, salmon export to the Sandwich Islands, and milling at Oregon City. At one time he made a proposition to build the canal and locks at the Willamette Falls, at his own expense; but was refused the charter. (F. X. M.)

Returning to Mr. Matthieu's first years in Oregon: He remained with Lucier until 1844. For two years afterwards he lived on French Prairie proper, which is some six miles back from the river. He was engaged in labor during this time, building houses, and making wagons for the settlers. Life he found carried on here in simple style, log cabins being the rule, furnished with big fireplaces, made of sticks, plastered over with the tough black clay found underneath the prairie sod. Few had stoves, and the cooking was done mainly over the coals, or in kettles swung on a crane.

In 1846 he was married, and took a square mile of land a mile from the river, back of the Butte, upon which he has lived now for fifty-four years. It is a noble old place, having both prairie and woodland, and abundant water, and commands beautiful prospects in every direction. His wife was Rose, a daughter of Louis Osant, a Hudson's Bay employee and trapper. The earliest recollections of Mrs. Matthieu are of journeyings on horseback with the parties of her father or of Michel La Framboise, one of the most trusted leaders of the Hudson's Bay trappers. She recalls how, on one of these jaunts when she was a mere tot of three years, and she had for a comrade a little daughter of La Framboise, they were delighted as they passed under

the expansive oaks of the Sacramento Valley to hear the dry leaves rustle under their horses' hoofs. It was a Gypsy life that the trappers led, and those that made the trip to California, like La Framboise and Osant, had the pleasantest road to travel of all the parties.

The mother of Rose having died, the girl was brought up in the family of Pierre Belaue, who occupied a house near Lucier's. A patriarchal family, fourteen in number, were born to these pioneers, ten of whom are now living:

PHILEMON GEER
CLARA OUIMETTE
*PRISCILLA
*EDWARD
ALFRED
LESTER
MAMIE
RANDALL
CHARLES
ROSE
ARSINOE BURTON
*HENRY
ERNEST
*WILLIAM
*VIOLET

Mr. Matthieu has lived as a farmer of Oregon, having been able to provide his family with life's advantages, and himself performing the duties of the good citizen. Besides filling the office of Justice of the Peace in the Provisional Government, he was in 1874 and again in 1878, elected to the Oregon Legislature from Marion County. In 1849 he made the trip to the California gold mines, but was so virulently attacked by fever there as to be compelled to return without making a fortune. In 1858 he took a trip to Canada, by way of Panama, and in 1883, went with the pioneer excursion on the Northern Pacific Railroad. He is now at the age of eighty-two, in

good health, of unimpaired memory, good hearing, and unchanged voice; though, having suffered in early life from snow-blindness in the Rocky Mountains, has somewhat lost the use of his sight. He is a member of the Masonic fraternity, of high degree. He was in the mercantile business for many years, after 1850, at Butteville, with George Le Roque, and in all business relations and in public affairs has maintained a reputation for unquestioned honesty.

NOTES.

IN REGARD TO INDIAN TRIBES, THEIR ANTIPATHIES, ETC.

Mr. Matthieu says: "I have forgot a great deal. Of the Sioux, where I was, there were the Blackfeet—a large nation; then there were the Ogalallahs. Their chief, when I was there, was called Yellow Hair. His hair was not yellow, but lighter than some others. He was a big fellow, and you could hear him grunt like a grizzly. Then there was a little tribe, the Broken Arrows. They were the meanest set—they would get liquor, and kill each other. I do not suppose there were twenty of them when I left. The Crow nation lived west of Fort Pierre, about one hundred or two hundred miles, and one division of them was the Gros Ventres. The Pawnees were the terror of the Sioux; there were many half-breeds among them. The Sioux did not all have horses. The poorer ones went on foot. But all had buffalo meat. Those that had horses would surprise a herd, and drive them to the Bad Lands, and force many of them over a precipice or into a crevice. Buffalo, when they are stampeded, do not stop at anything, but go over a bluff or into a river. When a crevice is filled full of their bodies the main herd passes on as over a bridge; then the poorer Indians came and helped themselves to the meat.

"West of the Rocky Mountains the Indians were entirely different. It was a new creation. The Snakes, Piutes and Bannocks seemed very much alike—a poor set. The Cayuses were the most powerful, and the meanest. They were strapping big fellows, and rich. I was told by Hudson's Bay men that they frequently had three or four packs of beaver skins to a tent. That was money. Each pack weighed ninety or one hundred pounds, and the skins were worth \$4 or \$5 a pound. Some of them had five hundred horses apiece—part work horses; part riding or running horses. When I was among the Snakes I bought a white horse for a buffalo skin and a shirt. But in Grande Ronde I was stopped by a Cayuse chief, who said that the horse was his. I told him I bought it. He said it had been stolen. There was a man traveling with me; his name was Russell. Russell said I had better pay the Cayuse something. So I put down a buffalo robe, a shirt and a handkerchief, and said: 'You can take whichever you please—these or the horse.' He took the things, and I took the horse.

“The Cayuses often came into the Willamette Valley to trade horses for cattle. They had some race horses that they would not sell for \$500. They were not a large tribe, not able to muster over two hundred or three hundred fighting men at the farthest. They were well armed with guns, but even with bows and arrows could shoot a man through the heart at fifty yards. They were proud and cruel, and showed it in their faces. The Nez Perces had much better faces than the Cayuses. The Sioux did business on honor. If any of their tribe was mean or dissipated he was regarded as a clown; he was not respected.”

AS TO SLAVERY AMONG THE INDIANS.

Among the Sioux, where I was, all captives were regarded as slaves; so I was told by a chief. I saw but one slave—a woman. Men were not often taken alive.

NEGRO SLAVERY IN OREGON.

This question did not make much stir on French Prairie. The idea was this: Indians were much cheaper and better labor than negroes. For a blanket that cost \$3 you could hire an Indian a month—or perhaps two months; and many of the Indians were good workers. They could handle an axe like a white man; and on the river they were the best boatmen. They would paddle all day in a canoe, or on a bateau, and want only a little meat and a salmon skin.

Some Southern people who brought their negroes with them wanted to keep them as slaves; but the people of Oregon opposed this and made the law that no negro should come to Oregon. It was never enforced.

AS TO PROHIBITION.

“All were in favor of this. It was no trouble. The Catholic missionaries as well as the Methodists favored it. The Hudson’s Bay Company had liquors stored, but never kept them for public sale. The distiller on French Prairie did not hold out long. Some of the Canadians went to his place to drink, or trade for it; but there was no money in the country, and they could only trade with little articles and there was no profit. A man at Milwaukee Bluff held out about two years, but gave it up—there was no money, and trade did not amount to anything in an illegal business.”

AS TO MONEY, ETC.

“There was no coin. If it was brought to the country it was not received at Vancouver. Furs, at a fixed valuation, were the first currency. Wheat was next.

“Wheat had to be delivered at the Hudson’s Bay warehouse at Champoege. For this a receipt was given by the H. B. clerk. The receipt passed current as money, and was worth its face in goods at Vancouver.”

To illustrate the *modus* of doing business, Mr. Matthieu tells the following incident: “I was barefoot and nearly naked, and wanted some clothes. I took an order of Lucier’s, and went down to Fort Vancouver; but, as I had just come across the country, and was not long from Canada, I was met by so many Frenchmen at the fort, who wanted to hear all about my journey, and Canada, which some of them had not seen for twenty years, that I did not get my order in at once. When at last I presented it, the clerk said that I would have to see Douglas, as Lucier’s account was all drawn; so many others had been bringing his paper.”

“Douglas told me to go to McLoughlin. Each had an office in the building. When McLoughlin looked at my order he said he was sorry, but the account was drawn. I said, ‘It will come rather hard on me. I am barefoot, and almost naked, and I supposed Lucier’s credit was good anyhow.’ Then the doctor began to ask me where I was from. I told him ‘Terrebonne, in Canada.’

“‘I am from near that part,’ he said. Then he asked me about the place and people, and of old Doctor Frasier; and kept me about an hour talking. At last he said, ‘You look honest; go to the office and get this filled.’ And gave me an order for about \$18 worth of goods.

“At the office there was a little entrance, about eight feet square, and a little window into the store, where the goods were passed out. The clerk there was Doctor McLoughlin’s son, whom I had seen in Montreal. He knew me, and at once opened the door inside and asked me in. ‘Take all you need,’ he said, ‘and never mind the old man.’

“But I took only the amount of the order. But all the clothes were made for big fellows—a great deal too big for me. So I took cloth, and got it made up the best I could.”

AS TO EFFECT OF MINES ON BUSINESS, ETC.

“Gold dust was like dirt. Many believed it would never have any value. I have seen the Hudson’s Bay store at Oregon City take in a four-quart pan of dust in one day. They allowed \$16 an ounce; but much of it was the fine Yuba and American River dust, worth \$22 to \$22.50 an ounce in London.

“But it was not the men who went to the mines, so much as those that stayed on their farms and raised produce, that got the dust.

“I remember when I was in San Francisco in ’49, I went into a French restaurant. I was sick, and only called for tea and toast and an egg. For the tea and toast I paid \$1.25, and for the egg \$2. The egg had come around the Horn, packed in salt, and was a chunk of salt. I could not eat it.

“But prices for Oregon stuff did not hold out many years. Great shipments were made from the East. Habits of living among the farmers were not much changed. We always had enough to live on, both before and after the mines broke out.”

Mr. Matthieu was well acquainted with Governor Abernethy, the first Governor of the Provisional Government, succeeding the executive committee. He describes Abernethy as “a fine looking man, of medium size; easy in manner and ways, and very light complexion.” He built the first brick store in Oregon City, with mud for mortar. In the great flood of ’62 it collapsed. He kept a large stock of goods, trading by three vessels with San Francisco. He was in partnership with Clark, and for a time with Robb, who invested his gold mine profits in the store.

The mason who built the store was——McAdam, who also built the brick Catholic church at Saint Paul.

Mr. Matthieu was also acquainted with Joseph Lane, the first Territorial Governor. He describes the old general as “a very nice man;” quick in his movements, military in manner and bearing; not tall, and “dry and thin,” and all nerves.

AS TO TOWNS.

The flat at Oregon City was still, when he first saw it, thickly covered with tall timber. Waller's house stood near the present site of the woolen mills. The Hudson's Bay store was on the edge of the lowest bluff, over the water, about where the warehouse now stands.

Portland was nowhere—a dense forest and a tangled shore; but there was a grassy place among the trees near the mouth of the big gulch at the south part of town, where the boating parties up the river sometimes stopped to lunch or camp.

Etienne Lucier's old place was on the bluff, on the east side, and Johnson's place on the hill at the south end, west side.

Salem was just starting, the people at the old mission moving up to start the institute, etc.

I have examined the above manuscript of Mr. Lyman's, and find it correct. Nobody can contradict that; it could not be written more correctly.

F. X. MATTHIEU.

DOCUMENTS.

[In this department of the *Quarterly* there will appear material of the nature of primary sources for the history of the Pacific Northwest. The more extended documents, however, and collections having a unity will be reserved for the series, "Sources of the History of Oregon."]

Correspondence of John McLoughlin, Nathaniel J. Wyeth, S. R. Thurston, and R. C. Winthrop, pertaining to claim of Doctor McLoughlin at the Falls of the Willamette—the site of Oregon City.

The following correspondence was published in the Milwaukee Star, April 10, 1850. The files of this paper are exceedingly scarce. The original copies of the letters were probably destroyed. A knowledge of their contents is essential to an understanding of very important, though not creditable, transactions in Oregon's history. These letters also are an addition to the Wyeth material that the society has been making accessible to students of American history.

CHICOPEE, Mass., Nov. 16, 1850.

Capt. Nath. J. Wyeth:

MY DEAR SIR—You will excuse me, I am sure, when I assure you I am from Oregon, and her delegate to the Congress of the United States, for addressing you for a purpose of interest to the country which I belong.

I desire you to give me as correct a description as you can at this late period, of the manner in which you and your party, and your enterprise in Oregon, were treated by the Hudson's Bay Company, and particularly by Doc. John McLoughlin, then its Chief Factor. This Dr. McLoughlin has, since you left the country, rendered his name odious among the people of Oregon, by his endeavors to prevent the settlement of the country, and to cripple its growth.

Now that he wants a few favors of our Government, he pretends that he has been the long-tried friend of Americans and American enterprise west of the mountains. Your early reply will be highly appreciated, both for its information, and your relation to my country.

I am, sir, yours very truly,

S. R. THURSTON.

CAMBRIDGE, Nov. 21, 1850.

Hon. Sam'l R. Thurston:

DEAR SIR—Your favor of the 16th inst., was received on the 19th. The first time I visited the Columbia, in the autumn of 1832, I reached Vancouver with a disorganized party of ten persons, the remnant of twenty-four who left the States. Wholly worn out and disheartened, we were received cordially, and liberally supplied, and there the party broke up. I returned to the States in the Spring of 1833 with one man. One of the party, Mr. John Ball, remained and planted wheat on the Willamette a little above Camp du Sable, having been supplied with seed and implements from Vancouver, then under the charge of John McLoughlin, Esq., and this gentleman I believe to have been the first American who planted wheat in Oregon. I returned to the country in the autumn of 1834, with a large party and more means, having on the way built Fort Hall, and there met a brig which I sent round the Horn. In the winter and spring of 1835, I planted wheat on the Willamette and on Wappatoo Island.

The suffering and distressed of the early American visitors and settlers on the Columbia were always treated by Hudson's Bay Company's agents, and particularly so by John McLoughlin, Esq., with consideration and kindness, more particularly the Methodist Missionaries, whom I brought out in the autumn of 1834. He supplied them with the means of transportation, seeds, implements of agriculture and building, cattle and food for a long time.

I sincerely regret that the gentleman, *as you state*, has become odious to his neighbors in his old age.

I am your ob't serv't,

NATH. J. WYETH.

CAMBRIDGE, Nov. 28, 1850.

Hon. Robert C. Winthrop:

DEAR SIR—I have received a letter from Sam'l R. Thurston, Esq., of which the following is a portion:

"I desire you to give me as correct a description as you can at this late period, of the manner in which you and your party, and your enterprise in Oregon, were treated by the Hudson's Bay Company west of the Rocky mountains, and particularly by Dr. John McLoughlin, then its Chief Factor. This Dr. McLoughlin has since you left the country, rendered his name odious among the people of Oregon, by his endeavors to prevent the settlement of the country and cripple its growth. Now that he wants a few favors of our Government, he pretends that he has been the long-tried friend of Americans and American enterprise west of the mountains."

I have written Mr. Thurston, in reply to the above extract, that myself and parties were kindly received, and were treated well in all respects by J. McLoughlin, Esq., and the officers of the Hudson's Bay Co.; but from the tenor of his letter, I have no confidence that my testimony will be presented before any committee to whom may be referred any subjects touching the interests of said John McLoughlin, Esq.

The very honorable treatment received by me from Mr. McLoughlin during the years inclusive from 1832 to 1836, during which time there were no other Americans on the Lower Columbia, except myself and parties, calls on me to state the facts.

The purpose of this letter is to ask the favor of you to inform me what matter is pending, in which Mr. McLoughlin's interests are involved, and before whom, and if you will present a memorial from

me on the matters stated in Mr. Thurston's letter as above.

Respectfully and truly your ob't servant,

NATH. J. WYETH.

WASHINGTON, Dec. 28, 1850.

DEAR SIR—I took the earliest opportunity to enquire of Mr. Thurston what there was pending before Congress or the Executive, in which Mr. McLoughlin's character or interest were concerned. He would tell me nothing, nor am I aware of anything.

Respectfully your ob't serv't,

R. C. WINTHROP.

To N. J. WYETH, Esq.

John McLoughlin, Esq.:

DEAR SIR—On the 19th of December, 1850, I received a letter from Sam'l R. Thurston, delegate from Oregon, of which see copy No. 1, and by same mail an Oregon newspaper containing a communication over your signature, the letter [latter], I think, addressed in your handwriting.

From the tenor of Mr. Thurston's letter, I presumed he wanted my testimony for some purpose not friendly to yourself. I answered his letter as per copy No. 2, but doubting if my testimony, except it suited his views, would be presented, and being ignorant of his intentions, I wrote the Hon. R. C. Winthrop, late Speaker of the House of Representatives, and at present a member of the Senate of the United States, as per copy, (No. 3) and received from him a reply as per copy (No. 4).

Should you wish such services as I can render in this part of the United States, I shall be pleased to give them in return for the many good things you did years since, and if my testimony as regards your efficient and friendly actions towards me and the other earliest Americans who settled in Oregon, will be of use in placing you before the Oregon people in the dignified position of a benefactor, it will be cheerfully rendered.

I am, with much respect, yours truly,

NATH. J. WYETH.

Mr. Thurston writes to Mr. Wyeth. "That Dr. McLoughlin has, since you left the country, rendered his name odious to the people of Oregon." (That I have rendered my name odious to the people of Oregon, is what I do not know.) And "By his endeavors to prevent the settlement of the country, and to cripple its growth." I say I never endeavored to prevent the settlement of the country, or to cripple its growth, but the reverse. If the whole country had been my own private property, I could not have exerted myself more strenuously than I did to introduce civilization, and promote its settlement. "Now that he wants a few favors of our Government, he pretends that he has been the long-tried friend of Americans and American enterprise west of the mountains." Mr. Wyeth states how I acted towards him and his companions, the first Americans that I saw on this side of the mountains. Those

that came since, know if Mr. Thurston represents my conduct correctly or not. As to my wanting a few favors, I am not aware that I asked for any favors. I was invited by the promises held out in Linn's bill, to become an American citizen of this territory. I accepted the invitation and fulfilled the obligations in good faith, and after doing more, as I believe will be admitted, to settle the country and relieve the immigrants in their distresses, than any other man in it, part of my claim, which had been jumped, Mr. Thurston, the delegate from this territory, persuades Congress to donate Judge Bryant, and the remainder is reserved. I make no comment—the act speaks for itself, but merely observe, if I had no claim to Abernethy Island, why did Mr. Thurston get Congress to interfere, and what had Judge Bryant done for the territory to entitle him to the favor of our delegate. Mr. Thurston is exerting the influence of his official situation to get Congress to depart from its usual course, and to interfere on a point in dispute, and donate that island to Abernethy, his heirs and assigns, alias Judge Bryant, his heirs and assigns.

Yours respectfully.

JNO. McLOUGHLIN.

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